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Part VI—Section 2

Notifications or Orders of interest to a section of the public issued by Heads of Departments, etc.

NOTIFICATIONS BY HEADS OF DEPARTMENTS, ETC.

TAMIL NADU ELECTRICITY REGULATORY COMMISSION

Amendments to the Tamil Nadu Electricity Supply Code

[Notification No. TNERC/SC/7- 48, dated 02.09.2023]

No.VI(2)/(16d-1)/2023

WHEREAS the Tamil Nadu Electricity Regulatory Commission specified the Tamil Nadu Electricity Supply Code under section 50 of the Electricity Act, 2003 (Central Act 36 of 2003) and notified the same in the *Tamil Nadu Government Gazette*, dated the 1st September 2004, and subsequent amendments notified thereafter.

AND WHEREAS, it is considered necessary to issue further certain amendments to the Tamil Nadu Electricity Supply Code and such amendments shall be subject to the condition of previous publication and accordingly undergone previous publication.

NOW THEREFORE, in exercise of the powers conferred on it by Section 181 read with Section 50 of the Electricity Act, 2003 and all other powers enabling it in this behalf, the Tamil Nadu Electricity Regulatory Commission hereby makes the following amendments to the Tamil Nadu Electricity Supply Code, namely.-

AMENDMENTS

In the said Regulations,-

1a. In Regulation 2, after clause (s), the following clause shall be inserted, namely: -

"(t) "Unauthorised use of electricity" has the same meaning as assigned to it under section 126 of the Act. The unauthorised use of electricity dealt under section 135 of the Act is applicable only to the theft of energy / illegal restoration of supply."

1b. In Regulation 2, at the end, the existing expression shall be substituted with the following, namely:-

"Words and expressions used in this Code but not defined either in this Code or the Act or the Electricity (Rights of Consumer Rules), 2020 or any other Regulations of the Commission or the General Clauses Act, 1897 (Central Act 10 of 1897) shall have the same meanings as commonly understood in the Engineering and Commercial parlance."

2. In Regulation 3, in sub-regulation (3), the term '*extra*' shall be omitted:-

3. In Regulation 4, in sub-regulation (2), after clause (xvi), the following shall be inserted, namely: -

"(xvii) Charges for periodical inspection for installation testing other than routine inspections like mass raid etc.,

(xviii) Charges for temporary disconnection at the request of consumer.

(xix) Charges for furnishing certified copies to the consumer"

4. In Regulation 5, the existing sub-regulation (2) shall be substituted with the following, namely: -

"(2) Excess demand charge:

Whenever the consumer exceeds the sanctioned demand, excess demand charge shall be:—

(i) In the case of HT supply, the maximum demand charges for any month shall be based on the kVA demand recorded in that month or such percentage of sanctioned demand as may be declared by the Commission from time to time whichever is higher. The exceeded demand shall alone be charged at double the normal rate.

(ii) In case of LT supply,

(a) The excess demand charges shall be applicable to the consumers other than domestic and agricultural categories.

(b) The demand recorded in services of domestic category shall be assessed during regular assessment. In case the recorded demand exceeds the sanctioned demand for the third time within a period of 12 months preceding the date of regular assessment of any billing cycle, the same shall be regularized as specified in the following explanation.

(c) For all services covered under the scope of regulation of excess demand, the Licensee shall install meters with demand recording facility. No excess demand charge is leviable till such time the Licensee installs meter with demand recording facility.

(d) The excess demand charges to the applicable category of consumers shall be at the rate of percentage of 'total energy charges' for every kW or part thereof over and above the sanctioned demand, as tabulated below:

Sanctioned Demand	*Recorded demand over and above the sanctioned demand*	*First occurrence*	*Second occurrence*	*Third occurrence*	*subsequent occurrences*
Up to 112 kW	*Up to 112 kW.*	*1%*	*1%*	*1%*	*Should have been regularised on 3rd occurrence.*
	Above 112 kW & up to 150 kW.	*1.5%*	*1.5%*	*3%*	*Should have been regularised on 3rd occurrence and all the conditions stipulated under Supply Code regulation 3(1) (b) shall be applicable.*
Above 112 kW and up to 150 kW	*Up to 150 kW.*	*1%*	*1%*	*1%*	*Should have been regularised on 3rd occurrence.*
	Above 150 kW.	*1%*	*1.5%*	*3%*	*10% (until HT service is availed)*

Explanation:

1. 'Total energy charges' means the total charges of electricity supplied which includes both fixed / demand charges and energy charges.

2. The first, second, third and consequent occurrences specified in the above table mean the occurrences within a period of 12 months preceding the date of regular assessment of any billing cycle. Counting of occurrences shall begin only from the first occurrence that has taken place within the said period of twelve months irrespective of number of recurrences happened in the past before the commencement of this period.

3. The Licensee shall issue a notice to the consumer pursuant to the first and second occurrences of excess demand over and above the sanctioned demand, advising the consumer to control the recorded demand within the sanctioned demand. The notice shall also contain the entire terms and conditions of this sub-regulation to create awareness to the consumer and to sensitize him to take remedial measures in time.

4. The consumer shall take timely remedial measures to control the recorded demand within the sanctioned demand and avoid recurrence.

5. On third occurrence, besides billing excess demand charges, the existing sanctioned demand shall be revised to the level of recorded demand during the third occurrence rounding off to next kW.

In case of domestic consumers, the excess demand charge is not applicable for any occurrence. However, on third occurrence, the existing sanctioned demand shall be revised to the level of recorded demand during the third occurrence rounding off to next kW.

For all the above cases, the development charges pertaining to the quantum of demand exceeded during third occurrence and regularized as above rounding off to next kW shall be included in the next bill with an intimation to the consumer with details of excess demand charges billed, regularization of demand to the level of recorded demand and the development charges payable.

6. The infrastructural development required if any pursuant to the regularization of excess demand shall be carried out by Licensee.

7. Only the development charges in force at the time of third occurrence of excess demand shall be payable.

8. If the recorded demand exceeds 150kW for the third time in the period of twelve months, the Licensee besides collecting excess demand charges shall issue 'one month notice' to the consumer for conversion of LT service into HT service connection indicating all relevant charges to be paid for the level of maximum recorded demand during third occurrence.

9. The sanctioned demand shall be re-fixed to the level of 150kW until conversion of HT service connection. All further occurrences after the third occurrence will be counted cumulatively irrespective of number of further blocks of 12 months period. Accordingly, the excess demand charges of 10% to the level of exceeding 150kW on each occurrence after the third occurrence shall be payable until the HT service is availed.

10. In all services which are newly to be brought under the scope of this sub-regulation, the relevant provisions are applicable only after the date of notification of this order or the date of installation of meter with demand recording facility, whichever is later.

11. For the cases where the recorded demand had exceeded the sanctioned demand in the past, prior to this notification and settled back within the level of originally sanctioned demand for a continuous period of twelve months as on the date of this notification but remaining unregularised, may be allowed to continue with the original sanctioned demand.

(iii) In case of temporary supply, the excess demand charges for HT / LT supply shall be as specified in clause (i) and (ii) of this sub-regulation as the case may be.

(iv) No addition or reduction of demand in any category of service shall be sanctioned unless the outstanding dues in the same service connection and other service connections of the same consumer had been paid.

(v) In all the above cases, the cost of any modifications in the equipment / line / metering system which may arise due to addition / reduction / regularization of demand shall be dealt with in accordance with the provisions of the Act and Codes / Regulations made thereon."

5. In regulation 5, in sub-regulation (5), the existing clause (v) shall be substituted with the following, namely:-

"(v) Where, on review, the amount of Security Deposit held is found to be in excess of the requirement, the excess shall be adjusted against two future demands for the electricity supplied. Where, after such adjustment in future two demands, there is balance to be refunded, the refund shall be made by cheque or direct credit to the account of consumer under advice to him, if bank account details are provided, before the due date for payment of the third demand. No other documents are required. Where a request is made by the consumer to adjust the excess Security Deposit above two future demands, the Distribution Licensee shall adhere to such requests."

6(a) In clause (vii)(a) of sub-regulation(5) of Regulation 5, the expression "Annexure-III" shall be substituted with the expression "Appendix-III".

6(b) In clause (vii)(b) of sub-regulation(5) of Regulation 5, the expression "Annexure-III" shall be substituted with the expression "Appendix-III".

6(c) In clause (vii)(c) of sub-regulation(5) of Regulation 5, the expression "Annexure-III" shall be substituted with the expression "Appendix-III".

7. In regulation 5, the sub-regulation (12) shall be substituted with the following, namely:-

"(12) Application Registration Charges:

The Licensee shall collect application registration charges from the applicants for the following, at the rates specified by the Commission from time to time.

(a) Application for new HT / LT services.

(b) Application for addition/reduction of demand/load in respect of HT and LT Services.

(c) Application for temporary service.

(d) Application for conversion of a service from LT to HT and vice versa.

(e) Application for shifting of HT / LT services under Deposit Contribution Works basis.

(f) Application for shifting of HT / LT lines/ structures/ equipment under Deposit Contribution Works basis.

(g) Application for change of tariff.

(h) Application for repair or replacement of Licensee's properties damaged due to dashing of vehicles etc., by the third parties chargeable under Deposit Contribution Works basis."

8. In regulation 7, the sub-regulations (1), (2), (3) & (3A) shall be substituted with the following, namely:-

"(1) No new service connection shall be given without meter. For all new LT service connections, the Licensee shall install meters with demand recording facility.

(2) At the time of seeking a new connection / temporary service connection, the applicant shall have the option either to purchase a meter on his own as per prescribed standards, specifications and relevant Regulations or require that meter to be supplied by the Distribution Licensee. Unless the consumer elects to purchase his own meter, the Licensee shall provide meters complying statutory standards and relevant Regulations and may require the consumer to give adequate security for the price of the meter and pay the hire charges there for wherever applicable. Where the consumer elects to purchase his own meter, the Licensee shall ensure that such meter complies with relevant standards, specifications and Regulation.

The meters required shall be tested by the Licensee at manufacturer's site and sealed duly recording their serial numbers. Such tested meters of respective serial numbers shall be made available in the open market. The details of serial numbers, make, capacity and vendor details shall be displayed in the Licensee's web-portal for information of consumers. Sufficient quantity of meters of all categories shall be made available in the market all the time. The meters so purchased from the market need not be tested again after procurement by the applicant and can be fixed in the installation straightaway.

A tracking and recording software for all new seals shall be provided by the manufacturer of the meter so as to track total movement of seals starting from manufacturing, procurement, storage, record keeping, installation, series of inspections, removal and disposal. Only the patented seals (seal form the manufacturer who has official right to manufacture the seal) shall be used. The consumer shall claim the meter purchased by him as his asset only after it is permanently removed from the system of the Licensee.

The Licensee shall publish and keep on updating on their web-portal about type, single phase / three phase capacity rating with respect to demand applied, specification along with the list of approved meter manufacturers and information of the places from where the consumers can purchase those meters. It shall cover all categories of LT, LT CT, HT , Bidirectional metering, solar generation, pre paid metering, ToD metering etc., on a permanent basis without any restriction in terms of period of duration for purchase, quantity of meters to be purchased by a division / circle etc.,

(3) The Licensee shall endeavor to provide smart pre-payment meter or pre-payment meter in a phased manner giving priority to services of higher consumption / revenue. All Central / State Govt. and local body services shall be provided with smart meters with facility of pre-payment mode. In areas which do not have communication network, pre payment meters shall be provided. For temporary supply, pre-payment meters (Rechargeable card Model) shall be provided. The pre-payment meter shall comply with relevant standards, specifications and Regulations. For pre-payment meter, payment of Security Deposit is not required.

(3A) In case of open access consumer, the Interface meters with facilities to record export and import of energy and other parameters depending upon tariff requirement shall be provided both at the generator and consumer ends and other required locations. The meters shall comply with relevant standards and specifications in accordance with the Central

Electricity Authority (Installation and Operation of Meters) Regulations, 2006, as amended from time to time."

9. In regulation 7, in sub-regulation (7), the existing clause (ii) shall be substituted with the following, namely: -

"(ii) when the above formula is made applicable for the LT services of more than 112kW in accordance with sub-Regulation 3(1)(b) of this Code or the capacity of the feeding transformer is more than capacity required to feed the contracted demand of the individual consumer, the kVA rating of the transformer represented as 'C' in the above formula shall be limited to the lower capacity of the transformer of available rating being used by the Licensee which is actually required to meet the quantum of contract demand of the individual consumer.

The transformer loss arrived as above, shall be added to the energy consumption, even when the recorded energy consumption is nil."

10. In regulation 7, the existing sub-regulation (9) shall be substituted with the following, namely:-

"(9) If a consumer considers that the meter is defective or meter readings not being commensurate with his consumption of electricity, he may apply to the Licensee to get his meter tested at Licensees' lab. The test shall be carried out by Licensee within 30 days and the cost of such a test shall be borne by the Licensee or the consumer according to the result of such test as to whether the meter is defective or correct.

The Distribution Licensee shall convey the date and time for such test to the consumer for his presence during testing. After testing, the Licensee shall give a copy of test report to the consumer duly signed by both the Licensee and the consumer, and retain one copy as acknowledgment. However, if the consumer opts not to be present at the site for testing, the Distribution Licensee shall carry out such testing and send copy of the report to the consumer. If the consumer disputes the results of such testing and demands re-testing by third party by accepting to bear the charges for such test, the Licensee shall arrange the testing at third party testing laboratories accredited by NABL from the list of third party testing agencies approved by the Commission. If it is established that the errors are beyond the specified limits and contrary to the results of the test performed by the Distribution Licensee, the costs of carrying out the tests both by the Distribution Licensee and that of the third-party testing laboratories shall be reimbursed by the Distribution Licensee. However in case it is established that the results of the test are the same as the results of the test performed by the Distribution Licensee, the cost of carrying out such test shall stand to be borne by the consumer. The meter data and test results shall be issued to the consumer and said results are final and binding on both the consumer and Distribution Licensee.

The approved list of third party agencies approved by the Commission shall be available in various offices and the website of the Distribution Licensee."

11. In regulation 7, the existing sub-regulation (10) shall be substituted with the following, namely:-

"(10) The procedure to be followed for replacement of defective/ damaged/ burnt meter shall be as follows:

(i) It is the responsibility of the Licensee to replace all defective meters belonging to the Licensee at his cost. The meter with defects such as stoppage of recording, stoppage of display, damage to seal, burning or damage to meter etc either on consumers complaint or upon inspection by the Distribution Licensee shall be replaced within the duration as specified by the Commission and restore supply through a new meter. The released defective meter shall be tested within 30 days in Licensee's laboratories. Wherever feasible, the data shall be downloaded. The records of all defective meters shall be accompanied with allied documentation of such test results. The important data downloaded such as meter reading and other data relevant to billing shall be documented. No defective meter shall be handed over to stores without testing in Licensee's laboratories.

(ii) Since the safe custody of the meter is the consumer's responsibility, replacement of meter due to damages shall be at the cost of consumer.

(iii) The cost of replacement for burnt meter shall be met by the Licensee unless it is proved otherwise that the burning out is due to the fault of the consumer.

If after investigation, it is found that the meter has become defective or burnt due to reasons attributable to the consumer, the cost of new meter and other applicable charges shall be recovered from the consumer through subsequent bills. No fee shall be charged from the consumer at the time of reporting by consumer or being noticed by Licensee that the meter is defective or burnt.

Besides the said charges for replacement of defective/ burnt meter, necessary bill revision for the period of defect or inaccurate recording of consumption , shall be made as per provisions of this Code and the excess or deficit charges shall be adjusted in the subsequent bills with due intimation to the consumer in writing along with test results and working sheet.

Sufficient rolling stock of meter shall be maintained in every section offices of the Licensee for timely replacement of defective meters.

(iv) When the meter is owned by the consumer and becomes defective / damaged or burnt due to the fault of the consumer, it is the responsibility of the consumer to replace the meter by a healthy one, if he elects to continue to have his own meter. Otherwise the Licensee shall replace the meter, collect the specified deposits/ applicable Charges from the consumer."

12. In regulation 7, after sub-regulation (10), the following sub-regulation shall be inserted, namely:-

"(11) In case of single phase meters, the consumer shall ensure there is no common neutral or phase or looping of neutral or phase of two or more consumers on consumer side wiring. If such common neutral or phase or looping of neutral or phase comes to the notice of the Licensee or if the earth leakage indication is displayed in the meter, the Licensee shall inform the consumer in writing advising him to rectify the defect to ensure proper recording of consumption."

13. In regulation 8, after sub-regulation (2), the following sub-regulation (3) shall be inserted, namely: -

"(3) The meter shall be read at least once in every billing cycle in urban as well as rural areas by an authorized representative of the Distribution Licensee. Services of all status such as existing services, newly released services during previous billing cycle, service remaining under disconnection etc., shall be covered in the regular assessment of such periodicity. In case of smart meters, the meters shall be read remotely at least once in every billing cycle and in case of other pre-payment meters; the meters shall be read by an authorized representative of the Distribution Licensee at least once in every three months. The data regarding remote assessment and billing shall be made available to the consumer, through website or mobile App or SMS, etc. Consumers having smart pre-payment meters may also be given the data access for checking their consumption."

14. In regulation 8, the existing sub-regulation (4), shall be omitted.

15. In regulation 8, the existing sub-regulation (5), shall be substituted with the following, namely:-

"In case of LT services, after taking the meter readings, the particulars of meter readings, energy consumption and charges payable shall be incorporated in the consumer meter card.

Wherever the particulars of meter readings, energy consumption, charges payable and last date for payment etc., are sent to the consumer through SMS and Mail to the registered mobile number and e-mail id respectively, such communication shall also be construed as Bill-cum-Notice in relation to the provisions contained under Regulations 8, 13 and 14 of this Code.

The intimation of disconnection for any reason shall also be communicated to the consumer through SMS with details of disconnection such as date, final reading, reason for disconnection etc."

16. In regulation 8, the existing sub-regulation (6), shall be substituted with the following, namely:-

"(6) Procedure of generation and issue of billing:

(a) Payment for energy supplied shall be made by the consumer according to the meter readings referred to above and on delivery of a bill there for in the case of High Tension consumers and incorporation of current consumption charges in the consumer meter card in the case of Low Tension consumers. In case of pre-payment metering, the Distribution Licensee shall issue the bill to the consumer on his request.

Pre-payment meters shall be designed to automatically cut off supply when the amount credited is exhausted. This shall however not be treated as a disconnection and the supply will be resumed whenever the meter is recharged.

(b) The Distribution Licensee shall intimate the consumer about despatch of bill through SMS / mail, immediately after the despatch in case of HT services and within a period of not more than four working days from the date of the assessment in case of LT services. The intimation shall consist of the details of bill amount and the due date for payment.

The Distribution Licensee shall also upload the bill on its website on the day of bill generation. The billing and payment details of minimum last one year for all consumers shall be made available on the Licensee's website.

(c) The Distribution Licensee shall issue the first bill in the same billing month for HT , LT CT services and temporary services. For other services the first bill shall be issued preferably in the same billing month but not exceeding two billing months from the date of effecting a new connection where post payment meters are installed.

(d) In case the consumer does not receive the first bill within such period or any regular bill in subsequent periods, he shall complain in writing to the Distribution Licensee and the Distribution Licensee shall issue the bill within seven days. The consumer can also get his billing details from Licensee's website.

(e) The consumer is equally responsible to make the payment promptly and regularly for the electricity consumed by him from the Licensee.

(f) The Distribution Licensee shall not generate more than two provisional bills for a consumer during one financial year and if the provisional billing continues for more than two billing cycles except under extraordinary situation due to force majeure, the consumer may refuse to pay the dues until bill is raised by the Distribution Licensee as per actual meter reading.

(g) The information regarding the authority with whom grievance or complaint pertaining to bill can be lodged shall be provided along with the bill and the same shall also be made available on Distribution Licensee's website.

(h) In case of vacation of premises, the Distribution Licensee shall arrange to take a special reading of the meter on receiving the consumer's written request and issue a final bill including all arrears till the date of billing and issue a No-Dues certificate on receiving final payment, within seven days from the receipt of such payment."

17. In regulation 9, after sub-regulation (1), the following shall be substituted, namely:

"Whenever there is change in the sanctioned demand, the change shall be effected, as far as possible, to coincide with the next meter reading. However, if it is not possible to do so, the meter shall be reset and the maximum demand charges shall be billed proportionately for the respective periods.

Revised Test Report (RTR) shall be taken incorporating all relevant details of change in demand except temporary reduction of demand. The date of RTR shall be the date of effect of change in demand. The changes made in respect to meter/metering system such as meter details / CT details / C.T. ratio available / adopted, change in M.F meter/meter box seals etc shall be documented in the RTR clearly. However, for temporary reduction of demand effected on seasonal basis as requested by the consumer without any change in the metering system, the RTR is not necessary.

(1A) Dynamic reduction of demand to suit the seasonal requirement is applicable to Industries other than IT services covered under IIIB and also marriage halls covered under Tariff V. Dynamic reduction of demand shall be effected on application by willing consumers. Such application shall be made online in a simple format. No inspection is necessary. The metering system need not be de-rated for such temporary reduction of demand. The reduction in demand shall take effect from the date of meter reading and MD reset of succeeding assessment following the date of application. Contracted demand shall remain the same and continue to be unaltered in their Test report and agreement. Revised test report is not necessary.

The reduction of demand shall be applicable for a minimum of one billing cycle. Reduction of demand is permissible four times in a block of one year. The period of one year block shall be reckoned from the commencement of first billing cycle from which reduction of demand from the contracted demand was sanctioned. After a particular sanction, the consumer can extend the period of reduction of demand, provided that the application is made before the date of expiry of billing cycle until which the reduction of demand stands sanctioned. Also the consumer shall have an option of applying increase in demand within the contracted limit from the date of expiry of existing sanction. In both cases such application for extension of period or revision of desired demand reduction shall also be counted for the purpose of reckoning the four times permissible in one year.

On expiry of above period of demand reduction, the reduced demand shall automatically be restored to the original level of contracted demand on the date of the expiry. In case the recorded demand exceeds the level of reduced temporary demand in a billing cycle, the fixed charges for the entire contracted demand shall be payable for that billing cycle. If the temporary reduction of demand is made or extended for a continuous period of one year by the consumer without restoring to the contracted demand at any point of time during that year, the reduced demand at the end of such block of one year period shall be made permanent as the contracted demand with revised RTR and agreement. The metering system shall also be de-rated if necessary. Thereafter if the consumer requires additional demand, he shall apply afresh for the additional demand and the terms and all charges payable at the time of such application shall be applicable. Such applications shall be given separate priority.

Licensee shall make required changes in the application and billing software for seamless processing and uniform implementation."

18. In Regulation 10, after existing sub-regulation (5), the following shall be inserted, namely:-

***"**(6) In case of unforeseen constraints on the part of Licensee to carry out the assessment / force-majeure conditions, the Licensee may have the option of allowing the consumer to send the picture of meter display of the respective service connection that indicates the meter reading of billing parameters and the date of such readings, through registered mobile or email to the designated officer of the Licensee."*

19. The existing caption of Regulation 11 and sub-regulation (1) shall be substituted with the following, namely:-

"11. Assessment of billing in cases where the meter is defective:

(1) Where the meter fixed is found defective or burnt or to have ceased to function and no theft of energy or violation is suspected, the quantity of electricity supplied during the period when the meter was defective, shall be assessed based on the data downloaded through CMRI from the defective meter and scrutiny of those data , load curve etc., besides taking into consideration of site condition to corroborate the assessment so made. Wherever such downloading of data could not be done, the reason for not getting the meter tested or the reason for not downloading the data from the defective or burnt meter shall be recorded and signed by the designated authority by the Licensee. Wherever the data could not be downloaded, the quantity of electricity supplied during the period when the meter was defective, shall be assessed as mentioned hereunder."

20. In Regulation 11, at the end of sub-regulation (6), the following expression shall be inserted, namely:-

"In all above cases, the relevant test results and clear working sheet indicating the basis of computation of billing for the back period, the period during which the meter was found defective etc., shall be promptly communicated to the consumer in writing under acknowledgement."

21. The existing Regulation 14A shall be substituted with the following, namely:-

"14A Notice to consumers under automated meter reading system-

Notwithstanding anything contained in regulations 5,8,13,14 and 16 of this code or any provision in the Distribution Code, wherever the Licensee implements automated meter reading system through Automated Meter Reading (AMR) Technology / Advanced Metering Infrastructure (AMI) Technology using smart meters/ any other modern technology using smart meter or computerized billing, the billing details such as, Electricity Consumption, Consumption charges for electricity, the due date of payment, demand for additional Security Deposit, tamper indications if displaced, any other demand/information etc., shall be communicated through e-mail or SMS to the registered mobile number/e-mail id or any other electronic mode adopted by the Licensee with prior intimation to the Commission and such communication shall be deemed to be the notice issued for such purposes.

For this purpose, all consumers have to register their mobile number/ e-mail id with the Licensee and it is the responsibility of the consumer to ensure the correctness and periodical updation of mobile number and e-mail id, so registered. However, the Licensee has to provide appropriate facility for such verification and updation".

22. In regulation 15, at the beginning of sub-regulation (1), the following expression shall be added, namely:-

"Consumer shall have option to pay bills online or offline."

23. In regulation 15, the sub-regulations (2) & (3) shall be substituted with the following, namely:-

***"**(2) All High Tension bills, including those on account of miscellaneous charges, shall be paid within the due date fixed by the Licensee from the date of the bill. The High Tension consumer shall pay the bills through electronic mode such as RTGS / NEFT / Online money transfer for all payments of more than Rs.1000/-. Depending on the circumstances, the designated authority of the Distribution Licensee shall however accept cash payments on special occasions and unavoidable circumstances. If the payment is not received within fifteen days (notice period) from the expiry of the due date allowed for payment, the supply will be disconnected. However the consumer may be allowed extension of time to make payment beyond the expiry of the notice period allowed for payment, on an application made to the designated authority of the Distribution Licensee, subject to the levy of BPSC as specified in this Code.*

(3) Low Tension consumers shall pay the amount due in cash or online or by money order or by demand draft on local bank, or by cheque drawn on a bank where the Distribution Section Office is located or through electronic payment or collection through bank's branch counters or post office, etc. as stipulated by the Distribution Licensee. However, local bodies and Railways may issue cheque on the banks situated in the place of their office and the Licensee may claim the collection charges, if any, from such consumers. Payment for amounts exceeding Rs.1000/- (Rupees one thousand only) is preferred by DD / cheque / online payment. Depending on the circumstances, the designated authority of the Distribution Licensee shall however accept cash payments also and advise the consumer for future remittances by DD / cheque/online payment."

24. In regulation 16, the following shall be inserted, after the existing content, namely:-

"If the meagre balance (difference between the billed electricity charges and higher amount paid by the consumer) could not be given to the consumer at the counter due to scarcity of small denomination of amount or the consumer had prepared cheque with excess amount inadvertently, the due balance may be credited to the advance of the consumer account with the oral consent of the consumer."

25. In regulation 17, the existing sub-regulation (7) shall be substituted with the following, namely:-

"(7) The Licensee shall on receipt of the notice referred to in sub-regulation (3) make such adjustment of the dues due to him from the consumer as may be necessary to clear the dues from the consumer against the Security Deposit or additional Security Deposit or any other deposit made by the consumer, and after making such adjustment, refund the balance deposit, if any, to the consumer within three months from the date of expiry of the notice period referred to in sub-regulation (3) by direct credit to the account of consumer under advice to him, if bank account details are provided."

26. In regulation 17, the existing sub-regulation (8) shall be substituted with the following, namely:-

***"**(8)Where any consumer has more than one service connection, if he defaults in the payment of dues relating to any one of the service connections that includes dues pointed out by validated audit, charges due to theft of energy, unauthorised use of electricity, violation, dues relating to deposit contribution works, etc., the Licensee may include such dues in other service connection(s) in the name of the consumer and cause those service connection(s) to be disconnected after issuing proper notice with working sheet and quoting the authority under which such dues are payable, till all the arrears due for all the service connections are paid, notwithstanding the fact that the service connections are covered under separate agreements."*

27. In regulation 19, the existing sub-regulation (6) shall be substituted with the following, namely:-

***"**(6) The assessment under this section shall be made at a rate equal to twice the tariff applicable for the relevant category for which the load was found to have been misused for the period specified in sub-section (5) excluding the cost of supplied electricity already paid by the consumer for the units / demand recorded in the meter for the period for which such assessment is made. The formula for the assessment is given in Form 8-A in Appendix to this Code."*

28. In regulation 22, the existing sub-regulation (1) shall be substituted with the following, namely:-

***"**(1) The Licensee shall restore the supply to the service immediately and in any case not exceeding six working hours on receipt of electricity charges or such other dues and other charges as applicable."*

29. In regulation 22, in sub-regulation (6), the existing sub-clause (ii) shall be substituted with the following, namely:-

"(ii) The authorized Officer of the Licensee may permit such consumer to pay the outstanding in installments and to avail reconnection on receipt of 40% of the total arrears outstanding after closing of account due to the Licensee, which include –

(a) Arrears on the date of closure of accounts.

(b) The applicable BPSC / interest up to the date of payment.

(c) The balance 60% of the amount shall be collected in ten monthly installments. In addition to the above, the full amount of Security Deposit adjusted while closing of account shall be collected in one lump sum along with the aforesaid portion of 40% before effecting restoration of supply.

***Explanation:** For the purpose of removal of doubts, it is hereby declared that any tariff minimum collected by the Tamil Nadu Electricity Board prior to the date of publication of the Tamil Nadu Electricity Supply (Amendment) Code, 2006 in the Tamil Nadu Government Gazette, that is to say prior to 21st June 2006 on the basis of sub-regulation (6) as it stood before the said amendment need not be refunded by the Tamil Nadu Electricity Board."*

30. In regulation 23, in sub-regulation (AA), in clause (7) the expression,

"Provided that if the quantum of energy consumption is recorded in the meter installed by the Distribution Licensee in the consumer's premises, the authorized officer shall arrive such energy consumption as per the assessment formula given in Form 8-A in Appendix to this Code."

shall be substituted with the following, namely:-

"Provided that Section 135 shall be invoked only for the following cases involving the offence of theft of energy:

(i) Cases where the energy is not recorded / partially recorded in the meter.

(ii) Cases of illegal restoration of disconnected service supply to disconnected service in any manner.

(iii) Cases of unauthorized usage of power from agricultural and Hut services."

31. In Form-8 of Appendix, in part I, in clause (E), the existing sub-clause ii, shall be substituted with the following, namely:-

"ii Assessment of quantum of demand charges in HT service and fixed charges in LT services:

(a) *For all Service connections, the maximum demand shall be assessed as 75% of the total connected load at the time of inspection subject to a minimum of the sanctioned / contracted demand. A power factor of 0.90 lag for HT and 0.85 lag for LT shall be used for conversion between kVA and kW.*

(b) *Assessment of demand charges for HT services:-*
Twice the appropriate H.T. tariff rate for maximum demand.

(c) *Assessment of fixed charges for LT services:-*
Twice the appropriate LT tariff rate for fixed charges."

32. **In Form-8 of Appendix, the existing part II, shall be substituted with the following, namely:-**

"II. Assessment of quantum of energy consumption and charges in a case of illegal restoration of supply to a disconnected service connection shall be as follows:

(A) The period of assessment will be for twelve months immediately preceding the date of detection of the illegal restoration of supply or for the period from the date of disconnection of the service connection to the date of detection of the illegal restoration, whichever period is less:

(B) The quantum of energy for assessment and computation of assessment charges for illegal restoration of supply shall be as follows:

(i) When the meter is healthy:- Units recorded from the date of disconnection of the service connection to the date of detection. The assessment shall be equal to twice the tariff applicable that includes both the energy and demand/fixed charges. The tariff charges for the units/demand recorded in the meter for the period for which the assessment is made shall not be collected. If collected, the same shall be credited to the consumer account.

(ii) When the meter is found defective:- Quantum of energy consumed by illegal restoration of energy (U) shall be computed using the formula above given in part I.

(C) The assessment shall be at two times the applicable charges of electricity that includes both energy charges and demand/fixed charges.

(D) In addition to the above assessment charges, all other procedures laid down under sub-regulation 23 (AA) of this Code including the stipulations in regard to compounding the offence shall be followed.

Note: *The applicable tariff as specified for assessment is the tariff in force during such period of assessment for all the above cases dealt under FORM 8".*

33. Existing Form 8-A of Appendix of Supply Code shall be substituted with the following, namely:-

"FORM 8-A

[Refer Regulation 19 (6)]

FORMULA OF ASSESSMENT TOWARDS UNAUTHORIZED USE OF ELECTRICITY UNDER SECTION 126 OF THE ELECTRICITY ACT 2003.

(i) Quantum of misused energy :

$$U = a \times (b / c) \text{ kWh}$$

Where,

a – Total consumption recorded during the preceding period of existence of such violations limited to a specified period

b – Misused load found at the time of inspection

c – Total connected load found at the time of inspection

(ii) Amount of assessment on account of unauthorized use of energy

$$= [(2 \times U \times d) – (U \times e)] + [(2 \times b \times F_1) – (b \times F_2)]$$

Where,

U - Quantum of misused energy, kWh

d - Tariff of unauthorized use

e - Tariff of authorized use

F_1 - Demand / fixed charges of unauthorized use

F_2 - Demand / fixed charges of authorized use

b - Quantum of unauthorised demand in kW / kVA

(iii) Period of unauthorized use

The authorized officer may take into account the following and arrive at the least period (duration) of unauthorized use of electricity:

(a) *For the period of twelve months*

(b) *For the period from the date of prior inspection if any by the Licensee's officer to the date of detection.*

(c) *From the date of service connection to the date of detection*

(d) *Wherever electronic meters are installed and the load curves are studied periodically, the period of unauthorized use of electricity could be limited to the exact period as could be determined scientifically.*

(e) *Based on the valid document produced by the accused person.*

(f) *For any other reasonable period as assessed by the authorized officer to the best of his judgment.*

Note: *The tariff for unauthorized use (d) as specified in the above formulae for assessing the charges is the tariff in force during such period of assessment."*

34. Existing Form 9 of Appendix of Supply Code shall be substituted with the following, namely:-

"FORM 9

[Refer Regulation 23 (AA) (8)]

*Provisional Assessment order for *theft of energy / Illegal restoration of supply under section 135 / 138 of the Electricity Act, 2003.*

From	*To*
(The Authorised Officer),	*(Full address of the person in whose name the service connection stands (or) occupier (or) enjoyer, etc.)*

Letter No……..…,dated……

Sir,

*Sub: *Theft of energy / Illegal restoration of supply – Detected in HT / LT SC No……Tariff….Provisional Assessment Order - Reg.*

Ref: Inspection Report dated …

*1.0 On……...(the day, month, year of inspection) at……...(time) hours the service connection in SC No…….. located at Door No……., in SF No……. (Full address of the service connection) which is/was in the name of Thiru/Thirumathy …… */and its installation being occupied /*

used by …….. was inspected by me in the presence of you / your representative Thiru/Thirumathy ……..

*2.0 *During the inspection it was found that an offence of theft of energy / Illegal restoration of supply has been committed …… (describe the actual mode of theft with details of artificial means found in the service/unauthorized reconnection of a disconnected service connection). By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the Licensee.*

The above said illegal abstraction, consumption and use of energy is punishable under section 135 / 138 of the Electricity Act 2003.

The service connection was disconnected on the date of detection of above offence.

3.0 The approximate loss caused by you due to dishonest abstraction/illegal restoration of supply is assessed at Rs…….. (Rupees ….……) in accordance with the regulations of the Tamil Nadu Electricity Supply Code, and a working sheet is enclosed herewith.

4.0 The assessment amount as referred to above shall be paid within 7 working days from the date of receipt of this order.

5.0 If you are desirous of filing objections, if any, against the provisional assessment, you may send your explanation to the address of the undersigned with sufficient proof, within seven days from the date of receipt of this order. You may also choose to appear in person or through an authorised representative with relevant documents for an enquiry before the undersigned within 10 days from the date of receipt of this order.

6.0 You are requested to acknowledge the receipt of this order immediately.

Yours Faithfully,

(Authorised Officer)

Encl: Copies of

1. Inspection Report

2. Statement Recorded (if any)

3. Mahazar

4. Working sheet as per FORM 8

Copy submitted to: ……

Copy to……..

He is instructed to serve this order to the accused person with dated acknowledgement and send the acknowledgement to this office.

** Strike out whichever is not applicable. (If offence is theft of energy, section 135 is applicable, strike out section 138. If the offence is illegal restoration of supply, both section 135 and 138 are applicable.)"*

35. Existing Form 10 of Appendix of Supply Code shall be substituted with the following, namely:-

"FORM 10

[Refer Regulation 23 (AA) (15)]

*Final Assessment order for *theft of energy / Illegal restoration of supply under section 135 / 138 of the Electricity Act, 2003.*

From	*To*
(The Authorised Officer),	*(Full address of the person in whose name the service connection stands (or) occupier (or) enjoyer, etc.)*

Letter No……,dated……

Sir,

*Sub: *Theft of energy / Illegal restoration of supply – Detected in HT/LT SC No…….Tariff….- Final Assessment Order - Reg.*

Ref: 1. Provisional Assessment Order…

**2. Your reply….*

****

*1.0 * On……..(the day, month, year of inspection) at…….. (time) hours the service connection bearing SC No…….. located at Door No……., in SF No…….. (Full address of the service connection) which is/ was in the name of Thiru / Thirumathy …… / and its installation being occupied / used by ……was inspected by me in the presence of you / your representative Thiru / Thirumathy ……..*

*2.0 * During the inspection it was found that an offence of theft of energy / Illegal restoration of supply has been committed …… …… (describe the actual mode of theft with details of artificial means found in the service/unauthorized reconnection of a disconnected service connection). By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the Licensee. The above said illegal abstraction, consumption and use of energy is punishable under section 135 / 138 of the Electricity Act 2003.*

3.0 A provisional assessment was issued to you in the reference cited and you were allowed to file your objections and to appear for a hearing as per the Tamil Nadu Electricity Supply Code.

*4.0 * As you have not made any objection or representation / On detailed examination and careful consideration of your explanation offered, facts and records furnished in your letter / during the personal hearing, the final order is issued herewith as described below:-*

(A reasoned / detailed speaking order to be passed by the Officer concerned after thorough analysis of the theft of electricity noticed, inspection report , explanation offered and the findings, etc., Reference to be made to the materials in support of the claim about the existence of theft, the involvement or the role of the consumer with reference to the said theft of energy, relevant rules and regulations relating to consumers' duty and obligations, submissions made by the accused person in his written reply as well as during his personal hearing, documents/materials submitted by him etc., and reasons for acceptance and rejection of the same).

*5..0 * The loss caused by you due to above explained theft of energy illegal restoration of supply is finally assessed at Rs…… (Rupees ……) in accordance with the regulations of the Tamil Nadu Electricity Supply Code, and a working sheet is enclosed herewith. This final assessment amount shall be paid within seven working days from the date of receipt of this order.*

You are requested to acknowledge the receipt of this order immediately.

Yours Faithfully,

(Authorised Officer)

Encl: Copies of

1. Inspection Report

2. Statement Recorded (if any)

3. Mahazar

4. Provisional Assessment Order.

5. Working sheet as per FORM 8

Copy submitted to:

He is instructed to serve the order to the accused person with dated acknowledgement and send the same to this office.

** Strike out whichever is not applicable. (If offence is theft of energy, section 135 is applicable, strike out section 138. If the offence is illegal restoration of supply, both section 135 and 138 are applicable.)"*

36. Existing Form 11 of Appendix of Supply code shall be substituted with the following, namely:-

"FORM 11

[Refer Regulation 23(AA) (22)]

Compounding of offence under section 152 of the Electricity Act, 2003.

From	To
(The Authorized Officer),	*Full address of the person in whose name the service connection stands(or) occupier (or) enjoyer, etc.)*

Letter No……..,dated……

Sir,

*Sub : *Theft of energy / Illegal restoration of supply – Detected in HT / LT SC No…… Tariff…. - Order on Compounding Amount - Reg.*

*1.0 *On……..(the day, month, year of inspection) at……...(time) hours the service connection No…….. located at Door No……., in SF No……. (Full address of the service connection) which is / was in the name of Thiru / Thirumathy …… / and its installation being occupied / used by ……was inspected by me in the presence of you / your representative…….. Thiru / Thirumathy……..*

*2.0 *During the inspection it was found that an offence of theft of energy/ Illegal restoration of supply has been committed……..…… (describe the actual mode of theft with details of artificial means found in the service/unauthorized reconnection of a disconnected service connection). By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the Licensee.*

3.0 The above said illegal abstraction, consumption and use of energy is punishable under section 135 / 138 of the Electricity Act 2003.

4.0 As you have opted for compounding of offence under section 152 of the Electricity Act, 2003, you are requested to pay Rs……. (Rupees……..….) towards the compounding of the offence as mentioned above.

Yours Faithfully,
(Authorised officer)

Encl: Working sheet.

Copy to …….

**** Strike out whichever is not applicable. (If offence is theft of energy, section 135 is applicable, strike out section 138. If the offence is illegal restoration of supply, both section 135 and 138 are applicable.)"***

37. Existing Form-12 of Appendix of Supply code shall be substituted with the following, namely:-

"FORM 12

[Refer Regulation 19(A)(4)]

Provisional Assessment order for unauthorised use of electricity under section 126 of the Electricity Act, 2003.

From

(The Assessment Officer),

To

(Full address of the person in whose name the service connection stands (or) occupier (or) enjoyer, etc.)

Letter No……..,dated…….

Sir,

Sub:- Unauthorised use of Electricity detected in HT / LT SC No…… Tariff…… - Section 126 of the Electricity Act, 2003 – Issue of Provisional Assessment Order - Reg.

Ref:- Inspection Report dated ……..

1.0 On…….. (the day, month, year of inspection) at …….. (time) hours, the electricity service connection No……... located at Door No……., in SF No…….. (Full address of the service connection) which is / was in the name of Thiru / Thirumathy ……./ and its installation being occupied / used by ……was inspected by me in the presence of you/your representative Thiru / Thirumathy ……..

2.0 During the inspection, unauthorised use of electricity was noticed as detailed below:

…… ……... (describe the actual mode of unauthorised use of electricity as per the section 126 of the Act). The above said unauthorised use of electricity is punishable under section 126 of the Electricity Act 2003.

3.0 A copy of the inspection report is enclosed. A copy of the mahazar prepared at your premises and acknowledgement obtained from you / your representative has already been furnished to you / your representative. A copy of the statement recorded and signed by you / your representative is also enclosed.

4.0 You are hereby called upon to remove the cause of unauthorised use of electricity immediately if not done already and confirm the same by written intimation.

5.0 The charges payable by you towards the above unauthorized use of electricity is provisionally assessed at Rs…… as per the sub-sections (5) and (6) of section 126 of the Electricity Act, 2003. The working sheet is enclosed. The amount shall be paid within seven days from the date of receipt of this order, failing which the Service Connection shall become liable to be disconnected.

6.0 If you are desirous of filing objections, if any, against this provisional assessment, you may send your explanation to the address of the undersigned with sufficient proof, within seven days from the date of receipt of this order. You may also choose to appear in person or through an authorised representative with relevant documents for an enquiry before the undersigned within the same duration of seven days.

7.0 If no objection/ representation is received from you against this provisional assessment order within the stipulated period, the final order of assessment shall be passed accordingly.

8.0 You are requested to acknowledge the receipt of this order immediately.

Yours Faithfully,
(Assessment Officer)

Encl: Copies of

1. Inspection Report

2. Statement Recorded (if any)

3. Mahazar

4. Working sheet as per FORM 8A

Copy submitted to: ……..

Copy to:

He is instructed to serve this order to the consumer / occupier / enjoyer with dated acknowledgement and send the acknowledgement to this office."

38. Existing Form-13 of Appendix of Supply code shall be substituted with the following, namely:-

"FORM 13

[Refer Regulation 19(3) and 19(A)(4)]

Final order of Assessment for unauthorised use of electricity under section 126 of the Electricity Act, 2003.

From	*To*
(The Assessment Officer),	*(Full address of the person in whose name the service connection stands (or) occupier (or) enjoyer, etc.)*

Letter No……..,dated……..

Sir,

Sub:- Unauthorised use of Electricity detected in HT / LT SC No…… Tariff-…… - Section 126 of the Electricity Act, 2003 – Issue of Final Assessment Order - Reg.

Ref:- 1. Inspection Report dated ……....

**2. Your reply……...*

*1.0 On…….. (the day, month, year of inspection) at …….. (time) hours, the electricity service connection No…….. located at Door No……., in SF No……. (Full address of the service connection) which is / was in the name of Thiru / Thirumathy …… / *and its installation being occupied / used by …….. was inspected by me ……in the presence of you / your representative Thiru / Thirumathy ……*

2.0 During the inspection, unauthorised use of electricity was noticed as detailed below:

…… (describe the actual mode of unauthorised use of electricity as per the section 126 of the Act).

3.0 A provisional Assessment order was issued …… ……vide reference (1) cited and you were allowed to file your objections if any and also to appear for a hearing as per Tamil Nadu Electricity Supply Code.

*4.0 *As you have not made any objection or representation / On detailed examination and careful consideration of your explanation offered in your letter cited in reference (2) and with regard to the facts and records furnished by you, the final order is issued herewith as described below:-*

(A reasoned / detailed speaking order to be passed by the Officer concerned after thorough analysis of the unauthorised use of electricity noticed, inspection report, explanation offered and the findings etc., Reference to be made to the materials in support of the claim about the existence of unauthorized use of electricity, the involvement or the role of the consumer with reference to the said unauthorized use of electricity, relevant rules and regulations relating to consumers' duty and obligations, objections made by the consumer in his written reply as well as during his personal hearing, documents/materials submitted by him etc., and reasons for acceptance and rejection of the same).

5.0 The charges payable by you under sub-sections (5) and (6) of the section 126 of the Electricity Act, 2003 is finally assessed at Rs……(Rupees ……only). The detailed working sheet is enclosed herewith. The said amount shall be paid within 15 days from the date of receipt of this order, failing which the service connection shall become liable for disconnection on expiry of further fifteen days notice.

6.0 If you choose to prefer an appeal against this order, you may prefer an appeal in Form 6 of the Tamil Nadu Electricity Supply Code to the appellate authority (Executive Engineer / Superintending Engineer / Operation …….. (address of the appellate authority)) within 30 days from the date of receipt of this order on deposit of half of the assessment amount with the Licensee as per section 127(2) of the Electricity Act, 2003 along with an appeal fee of Rs.100/- by Demand Draft. The Demand Draft shall be drawn in favour of …… ……Payable at ……

7.0 You are requested to acknowledge the receipt of this Final assessment order immediately.

Yours Faithfully,
(Assessment Officer)

Encl: 1. Inspection Report

2. Statement Recorded (if any)

3. Mahazar

4. Provisional Assessment Order.

5. Working sheet as per FORM 8A

Copy submitted to:

He is instructed to serve the order to the accused person with dated acknowledgement and send the same to this office.

** Strike out whichever is not applicable."*

(By Order of the Tamil Nadu Electricity Regulatory Commission)

DR.C.VEERAMANI,
Secretary,
Tamil Nadu Electricity Regulatory Commission.

Explanatory statement

Taking into considerations of recommendations of the Code Review Panel formed and empowered under Regulation 27 of TNE Supply Code and provisions of Electricity (Rights of Consumers) Rules, 2020 made by the Ministry of Power, Govt. of India, following amendments are required to be made in the existing Regulations of the TNE Supply Code 2004, as amended:

More clarity needs to be brought to the applicability of unauthorized use of electricity and categories of supply, by exclusive definition in accordance with the ruling of Honorable Supreme court in the case of Executive Engineer & Another *Vs* M/s Seetaram Rice mill { civil appeal No. 8859 of 2011 reported in (2012) 2 SCC 108}.

The various category of charges recoverable by the Licensee and Registration charges specified in the Supply Code and Tariff order need to be made consistent with each other.

The regulation governing the excess demand over and above the sanctioned demand need to be modified to give more opportunity to consumer to control the demand within the sanctioned demand and to bring discipline among applicable consumers for better load management, demand control and regulated capacity adequacy in the LT network system and metering mechanism.

The provisions relating to purchase of meters by consumers for new and temporary service connection, various obligations of consumer and Licensee connected with meter, procedures involved in the challenge test of meters disputing its accuracy as opted by the consumers, time limits, procedures involved in replacement of defective/damaged/burnt meter, loss calculation involved in the LT metering of HT services etc., need to be revised and elaborated, for error-free and effective implementation to ensure prompt service to consumers.

The procedure for assessment, billing, time limits serving of bills and the obligation of Licensee as well as consumers in these areas need to be revised and elaborated for proper billing and better service to the consumer.

The procedure of documentation for the revised demand, need to be made more specific to avoid possible lapse in assessment and billing. The concept of dynamic load reduction is envisaged to reduce the financial burden on the seasonal industries.

The methodology of bill revision in case of meter defects need to be revised, giving priority to the data downloaded from the defective meter for basis for revision.

E-payment needs to be encouraged to avoid hardship to consumer owing to physical mode of payment.

Provision to refund the security deposit to the consumer by direct credit into the consumer's bank account is envisaged.

Avenue for payment of dues to Licensee has to be enlarged by loading all kinds of arrears in other service of the defaulter to ensure timely realization of dues to the Licensee.

The time limit for restoration of supply needs to be specified to ensure prompt service to consumers.

The provisions in regard to unauthorized use of electricity (violation by way of misuse of tariff, unauthorized extension of service etc.,) and theft of electricity need to be made more clearer in line with Commission's order in M.P. No. 28 of 2021 dated 05.05.2022 to stop the continuing misinterpretation of these provisions and resultant hardship to the consumers, due to wrong approach of Licensee officers by booking all violations under provisions of theft of energy.

The Forms relating to computation, issue of show cause / provisional assessment / final assessment / compounding of offence notices etc., need to be revisited and revamped to be comprehensively in line with the provisions of the Electricity Act, 2003 and Regulations of this Commission.

Accordingly, this amendment seeks to incorporate the above provisions in the Regulations of the Commission.

(By Order of the Tamil Nadu Electricity Regulatory Commission)

DR.C.VEERAMANI,
Secretary,
Tamil Nadu Electricity Regulatory Commission.

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ANNEXURE

TAMIL NADU ELECTRICITY SUPPLY CODE

Sl. No.	*Existing regulation*	*Regulation as amended*
1a	**2. Definitions** (a) to (s) xxx	**2. Definitions** *(a) to (s) xxx* *(t) "unauthorised use of electricity" has the same meaning as assigned to it under section 126 of the Act. The unauthorized use of electricity dealt under section 135 of the Act is applicable only to the theft of energy / illegal restoration of supply.*
1b	Words and expressions used in this Code but not defined either in this Code or the Act or the General Clauses Act 1897 (Central Act 10 of 1897) shall have the same meanings as understood in the Engineering and Commercial circles.	*Words and expressions used in this Code but not defined either in this Code or the Act or the Electricity (Rights of Consumer Rules), 2020 or any other Regulations of the Commission or the General Clauses Act 1897 (Central Act 10 of 1897) shall have the same meanings as commonly understood in the Engineering and Commercial parlance.*
2	**3. Categories of supply** (1) xxx (2) xxx (3) If the consumer opts for higher levels of voltages for demands less than that specified, the consumer shall bear the extra expenses to be incurred by the licensee to provide supply at such higher voltages.	**3. Categories of supply** *(1) xxx* *(2) xxx* *(3) If the consumer opts for higher levels of voltages for demands less than that specified, the consumer shall bear the expenses to be incurred by the Licensee to provide supply at such higher voltages.*
3	**4. Charges recoverable by the Licensee**- (1) xxx (2) Miscellaneous charges, namely,— (i) Capacitor Compensation charge; (ii) Excess demand charge; (iii) Excess contracted load charge (iv) Belated Payment Surcharge. (v) Additional Security Deposit, when so called upon (vi) Service / line / structure / equipments shifting charges. (a) Charges for dismantling temporarily or permanently (b) Charges for re-erection in case of temporary dismantling. (vii) Name transfer charge. (viii) Reconnection charge. (ix) Consumer meter card replacement charge. (x) Dishonored cheque service charge. (xi) Meter related charges. (xii) Application Registration charge.	***4. Charges recoverable by the Licensee***- *(1) xxx* *(2) Miscellaneous charges, namely,—* *(i) Capacitor Compensation charge;* *(ii) Excess demand charge;* *(iii) Excess contracted load charge* *(iv) Belated Payment Surcharge.* *(v) Additional Security Deposit, when so called upon* *(vi) Service / line / structure / equipments shifting charges.* *(a) Charges for dismantling temporarily or permanently.* *(b) Charges for re-erection in case of temporary dismantling.* *(vii) Name transfer charge.* *(viii) Reconnection charge.* *(ix) Consumer meter card replacement charge.* *(x) Dishonored cheque service charge.* *(xi) Meter related charges.* *(xii) Application Registration charge.*

	(xiii) Service connection charges. (xiv) Excess demand and excess energy charges during Restriction and Control of supply. (xv) Charges for restoration of cheque payment facility. (xvi) Charges for testing of equipments / installations.	*(xiii) Service connection charges.* *(xiv) Excess demand and excess energy charges during Restriction and Control of supply.* *(xv) Charges for restoration of cheque payment facility.* *(xvi) Charges for testing of equipments / installations.* *(xvii) Charges for periodical inspection for installation testing other than routine inspections like mass raid etc.,* *(xviii) Charges for temporary disconnection at the request of consumer.* *(xix) Charges for furnishing certified copies to the consumer.*
4	**5. Miscellaneous charges** (1) xxx (2) Excess demand charge Whenever the consumer exceeds the sanctioned demand, excess demand charge shall be:— (i) In the case of HT supply, the maximum demand charges for any month shall be based on the KVA demand recorded in that month at the point of supply such percentage of sanctioned demand as may be declared by the Commission from time to time whichever is higher. The exceeded demand shall alone be charged at double the normal rate. (ii) In case of LT supply, (a) "For Domestic and Agricultural category of service, the excess demand charges shall not be applicable." (b) "For other categories of LT services with contracted demand equal to or less than 18.6 KW (25 HP), the excess demand charges shall not be applicable where the connected load is equal to or less than the contracted demand. Note: For services with contracted demand less than or equal to 18.6 KW (25 HP), whenever the consumer's connected load exceeds the contracted demand, the licensee shall install meters with demand recording facility and bring the consumer under the scope of excess demand chargeable category. After installation of the meter, if the recorded demand is in excess of contracted demand, the existing demand, shall, after intimation to the consumer, be revised to the level of recorded demand and all relevant charges applicable for extension of additional demand shall be included in the next bill. No excess demand charge is leviable till such time the licensee installs meter with demand recording facility and bring the consumer under the scope of excess demand chargeable category."	***5. Miscellaneous charges*** *(1) xxx* *(2) Excess demand charge:* *Whenever the consumer exceeds the sanctioned demand, excess demand charge shall be:—* *(i) In the case of HT supply, the maximum demand charges for any month shall be based on the kVA demand recorded in that month or such percentage of sanctioned demand as may be declared by the Commission from time to time whichever is higher. The exceeded demand shall alone be charged at double the normal rate.* *(ii) In case of LT supply,* *(a) The excess demand charges shall be applicable to the consumers other than domestic and agricultural categories.* *(b) The demand recorded in services of domestic category shall be assessed during regular assessment. In case the recorded demand exceeds the sanctioned demand for the third time within a period of 12 months preceding the date of regular assessment of any billing cycle, the same shall be regularized as specified in the following explanation.* *(c) For all services covered under the scope of regulation of excess demand, the Licensee shall install meters with demand recording facility. No excess demand charge is leviable till such time the Licensee installs meter with demand recording facility.* *(d) The excess demand charges to the applicable category of consumers shall be at the rate of percentage of 'total energy charges' for every kW or part thereof over and above the sanctioned demand, as tabulated below:*

(c) For the remaining LT services other than those service connections covered in (a) and (b) above, when the contracted demand is in excess of 18.6KW (25HP) and for such of those consumers whose contracted demand is less than 18.6 KW (25HP) but opted for having meters with demand recording facility, the excess demand charges shall be -,

(I) Where the sanctioned demand is less than and upto 112 KW:

(A) Where the recorded demand does not exceed 112 KW, for every KW or part thereof in excess of the sanctioned demand, at the rate of 1% of the total energy charges.

Explanation: 'Total energy charges' shall have the same meaning as the term 'charges of electricity supplied' which includes both fixed/demand charges and energy charges.

(B) Where the recorded demand exceeds 112 KW, for every KW or part thereof in excess of sanctioned demand:-

- at the rate of 1% of the charges for electricity supplied for every KW or part thereof upto 112 kW;
- and at the rate of 1.5% for every KW or part thereof over and above 112 KW for the first two occurrences;
- and for the third occurrence, at the rate of 3% for every KW or part thereof over and above 112 KW;
- and thereafter, that is the fourth & subsequent occurrences at the rate of 10% for every KW or part thereof over and above 112 KW.

(II) Where the sanctioned demand is above 112 KW but less than or equal to 150 KW:

(A) Where the recorded demand does not exceed 150 KW, for every KW or part thereof in excess of the sanctioned demand, at the rate of 1% of the charges of electricity supplied. The 'charges of electricity supplied' is the fixed/ demand charges and energy charges as per proviso to clause (b) of sub-regulation (1) of regulation 3 of this code.

(B) Where the recorded demand exceeds 150 KW, for every KW or part thereof in excess of sanctioned demand:-

- at the rate of 1% of the charges for electricity supplied for every KW or part thereof upto 150 kW
- and at the rate of 1.5% for every KW or part thereof over and above 150 KW for the first two occurrences

Sanctioned Demand	*Recorded demand over and above the sanctioned demand*	*First occurrence*	*Second occurrence*	*Third occurrence*	*subsequent occurrences*
Up to 112 kW	*Up to 112 kW.*	*1%*	*1%*	*1%*	*Should have been regularised on 3rd occurrence.*
	Above 112 kW & up to 150 kW.	*1.5%*	*1.5%*	*3%*	*Should have been regularised on 3rd occurrence and all the conditions stipulated under Supply Code regulation 3(1)(b) shall be applicable.*
Above 112 kW and up to 150 kW	*Up to 150 kW.*	*1%*	*1%*	*1%*	*Should have been regularised on 3rd occurrence.*
	Above 150 kW.	*1%*	*1.5%*	*3%*	*10% (until HT service is availed)*

***Explanation**:*

1. *'Total energy charges' means the total charges of electricity supplied which includes both fixed / demand charges and energy charges.*
2. *The first, second, third and consequent occurrences specified in the above table mean the occurrences within a period of 12 months preceding the date of regular assessment of any billing cycle. Counting of occurrences shall begin only from the first occurrence that has taken place within the said period of twelve months irrespective of number of recurrences happened in the past before the commencement of this period.*
3. *The Licensee shall issue a notice to the consumer pursuant to the first and second occurrences of excess demand over and above the sanctioned demand, advising the consumer to control the recorded demand within the sanctioned demand. The notice shall also contain the entire terms and conditions of this sub-regulation to create awareness to the consumer and to sensitize him to take remedial measures in time.*

	- and for the third occurrence, at the rate of 3% for every KW or part thereof over and above 150 KW and thereafter, that is the fourth and subsequent occurrences at the rate of 10% forevery KW or part thereof over and above 150 KW. (**III) Revision of sanctioned demand for consumers with sanctioned demand of 112 KW and below, change over to LT category of above 112 KW but less than or equal to 150 KW/HT category :** For consumers **with a sanctioned demand of 112KW and below**, where the recorded demand exceeds the sanctioned demand for the second and subsequent times,- (A) In case the recorded demand **has not exceeded 112 KW,** the existing load sanction shall, after intimation to the consumer, be revised within one month of the second occurrence to the level of maximum recorded demand and all the relevant charges applicable to the additional load shall be included in the next bill. (B) In case the recorded demand **has exceeded 112** KW but less than or equal to 150 KW, the existing load sanction shall be revised upto the level of maximum recorded demand subject to acceptance of the conditions in the proviso to clause (b) of sub-regulation (1) of Regulation 3 on payment of all relevant charges applicable. If, however, the consumer does not opt to switch over to LT category limit of 150 KW under the proviso to clause (b) of sub –regulation (1) of regulation 3, the existing load sanction shall, after intimation to the consumer, be revised within one month of the second occurrence, to the level of 112 KW and all relevant charges applicable to the additional load shall be included in the next bill; For the third and subsequent occurrences of recorded demand exceeding the sanctioned demand of 112 KW, the licensee shall issue one month's notice for conversion of LT service to HT service indicating all relevant charges to be paid for a HT service connection for the level of recorded demand. **(IV) Revision of sanctioned demand for consumers with sanctioned demand above 112 KW but less than or equal to 150 KW, conversion to HT category:** For consumers with **a sanctioned demand above 112 KW but less than or equal to 150 KW**, where the recorded demand exceeds the sanctioned demand for the second and subsequent times,-	4. *The consumer shall take timely remedial measures to control the recorded demand within the sanctioned demand and avoid recurrence.* 5. *On third occurrence, besides billing excess demand charges, the existing sanctioned demand shall be revised to the level of recorded demand during the third occurrence rounding off to next kW.* *In case of domestic consumers, the excess demand charge is not applicable for any occurrence. However, on third occurrence, the existing sanctioned demand shall be revised to the level of recorded demand during the third occurrence rounding off to next kW.* *For all the above cases, the development charges pertaining to the quantum of demand exceeded during third occurrence and regularized as above rounding off to next kW shall be included in the next bill with an intimation to the consumer with details of excess demand charges billed, regularization of demand to the level of recorded demand and the development charges payable.* 6. *The infrastructural development required if any pursuant to the regularization of excess demand shall be carried out by Licensee.* 7. *Only the development charges in force at the time of third occurrence of excess demand shall be payable.* 8. *If the recorded demand exceeds 150 kW for the third time in the period of twelve months, the Licensee besides collecting excess demand charges shall issue 'one month notice' to the consumer for conversion of LT service into HT service connection indicating all relevant charges to be paid for the level of maximum recorded demand during third occurrence.* 9. *The sanctioned demand shall be re-fixed to the level of 150 kW until conversion of HT service connection. All further occurrences after the third occurrence will be counted cumulatively irrespective of number of further blocks of 12 months period. Accordingly, the excess demand charges of 10% to the level of exceeding 150 kW on each occurrence after the third occurrence shall be payable until the HT service is availed.* 10. *In all services which are newly to be brought under the scope of this sub-regulation, the relevant provisions are applicable only after the date of notification of this order or the date of installation of meter with demand recording facility, whichever is later.*

4	(A) In case the recorded demand **has not exceeded 150 KW**, the existing load sanction shall, after intimation to the consumer, be revised within one month of the second occurrence to the level of maximum recorded demand and all the relevant charges applicable to the additional load shall be included in the next bill. (B) In case the recorded demand has **exceeded 150 KW**, the existing load sanction shall, after intimation to the consumer, be revised within one month of the second occurrence, to the level of 150 KW and all relevant charges applicable to the additional load shall be included in the next bill. If, however, the recorded demand has exceeded 150 KW for the third or more number of times, the licensee shall issue one month's notice for conversion of LT service to HT service indicating all relevant charges to be paid for a HT service connection for the level of recorded demand. (iii) In the case of temporary supply, the excess demand charges for HT/LT supply shall be as specified in clause (i) and (ii) of this regulation, as the case maybe. (iv) No addition or reduction of load in case of LT service and no addition or reduction of demand in case of HT service, may be sanctioned unless the outstanding dues in the same service connection had been paid. (v) In all the above cases, the cost of any modifications in the metering system which may arise due to addition / reduction of loads may be dealt with in accordance with the provisions of the Act and Codes/ Regulations made thereon. (3) ,(4), 5(i) to 5(iv) xxx	*11. For the cases where the recorded demand had exceeded the sanctioned demand in the past, prior to this notification and settled back within the level of originally sanctioned demand for a continuous period of twelve months as on the date of this notification but remaining unregularised, may be allowed to continue with the original sanctioned demand.* *(iii) In case of temporary supply, the excess demand charges for HT / LT supply shall be as specified in clause (i) and (ii) of this sub-regulation as the case may be.* *(iv) No addition or reduction of demand in any category of service shall be sanctioned unless the outstanding dues in the same service connection and other service connections of the same consumer had been paid.* *(v) In all the above cases, the cost of any modifications in the equipment / line / metering system which may arise due to addition / reduction / regularization of demand shall be dealt with in accordance with the provisions of the Act and Codes / Regulations made thereon.* *(3), (4), (5)(i) to (5)(iv) xxx*
5	**5.** (5)(v) Where, on review, the amount of Security deposit held is found to be in excess of the requirement, the excess shall be adjusted against two future demands for the electricity supplied. Where, after such adjustment in future two demands, there is balance to be refunded, the refund shall be made by cheque before the due date for payment of the third demand. Where a request is made by the consumer to adjust the excess security deposit above two future demands, the distribution licensee shall adhere to such requests.	**5.** *(5)(v) Where, on review, the amount of Security Deposit held is found to be in excess of the requirement, the excess shall be adjusted against two future demands for the electricity supplied. Where, after such adjustment in future two demands, there is balance to be refunded, the refund shall be made by cheque or direct credit to the account of consumer under advise to him, if bank account details are provided, before the due date for payment of the third demand. No other documents are required. Where a request is made by the consumer to adjust the excess Security Deposit above two future demands, the Distribution Licensee shall adhere to such requests.*

6(a)	**5.** (5)(vi) xxx (5)(vii) (a) For the consumers under monthly billing who are not the owners of the premises and are unable to produce the consent letter in Form 5 of Annexure III to the Distribution Code from the owner of the premises for availing supply, the Security Deposit shall be equivalent to four times of the monthly average of the electricity charges for the preceding twelve months prior to April ;	***5.*** *(5)(vi) xxx* *(5)(vii)* *(a) For the consumers under monthly billing who are not the owners of the premises and are unable to produce the consent letter in Form 5 of Appendix-III to the Distribution Code from the owner of the premises for availing supply, the Security Deposit shall be equivalent to four times of the monthly average of the electricity charges for the preceding twelve months prior to April ;*
6(b)	(b) For the consumers under bi-monthly billing who are not the owners of the premises and are unable to produce the consent letter in Form 5 of Annexure III to the Distribution Code from the owner of the premises for availing supply, the Security Deposit shall be equivalent to six times of the monthly average of the Electricity charges for the preceding twelve months prior to April ; and	*(b) For the consumers under bi-monthly billing who are not the owners of the premises and are unable to produce the consent letter in Form 5 of Appendix-III to the Distribution Code from the owner of the premises for availing supply, the Security Deposit shall be equivalent to six times of the monthly average of the Electricity charges for the preceding twelve months prior to April ; and*
6(c)	(c) The provisions in (a) and (b) above shall be applicable to existing service connections when review of security deposit is undertaken. In regard to effecting of new service connections where the applicant is not the owner of the premises and is unable to produce consent letter in Form 5 of Annexure III to the Distribution Code from the owner of the premises for availing supply, collection of security deposit shall be governed by the orders on Non-Tariff related Miscellaneous charges of the Commission as amended from time to time and regulation 27(4) of Tamil Nadu Electricity Distribution Code. Such new consumers will be reviewed for adequacy of security deposit under (a) or (b) above, as the case may be.	*(c) The provisions in (a) and (b) above shall be applicable to existing service connections when review of Security Deposit is undertaken. In regard to effecting of new service connections where the applicant is not the owner of the premises and is unable to produce consent letter in Form 5 of Appendix-III to the Distribution Code from the owner of the premises for availing supply, collection of Security Deposit shall be governed by the orders on Non-Tariff related Miscellaneous charges of the Commission as amended from time to time and regulation 27(4) of Tamil Nadu Electricity Distribution Code. Such new consumers will be reviewed for adequacy of Security Deposit under (a) or (b) above, as the case may be.*
7	**5.** (6) to (11) xxx (12) Application Registration Charge The Licensee shall collect application registration charges from the applicants for the following, at the rates specified by the Commission from time to time. (a) Application for new HT/LT services. (b) Application for addition/ reduction of demand/ load in respect of HT and LT Services. (c) Application for temporary service. (d) Application for conversion of a service from LT to HT and vice versa. (e) Application for shifting of HT/LT services. (f) Application for shifting of lines/ structures/ equipments under Deposit Contribution Works for LT/HT. (g) Application for change of tariff. (h) Application for replacement of defective meters.	***5.*** *(6) to (11) xxx* *(12) Application Registration Charges:* *The Licensee shall collect application registration charges from the applicants for the following, at the rates specified by the Commission from time to time.* *(a) Application for new HT / LT services.* *(b) Application for addition / reduction of demand/load in respect of HT and LT Services.* *(c) Application for temporary service.* *(d) Application for conversion of a service from LT to HT and vice versa.* *(e) Application for shifting of HT / LT services under Deposit Contribution Works basis.* *(f) Application for shifting of HT / LT lines / structures/ equipment under Deposit Contribution Works basis.* *(g) Application for change of tariff.* *(h) Application for repair or replacement of Licensee's properties damaged due to dashing of vehicles etc., by the third parties chargeable under Deposit Contribution Works basis.*

7.	***7. Installation of Meter*** (1) Sub-section (1) of section 55 of the Act provides for the use of meters and reads as "No Licensee shall supply electricity, after the expiry of two years from the appointed date, except through installation of a correct meter in accordance with the regulations to be made in this behalf by the Authority: Provided that the Licensee may require the consumer to give him security for the price of a meter and enter into an agreement for the hire thereof, unless the consumer elects to purchase a meter: Provided further that the State Commission may, by notification, extend the said period of two years for a class or classes of persons or for such area as may be specified in the notification." (2) All new service connections shall be extended with meters only. For all new LT service connections, the Licensee shall install meters with demand recording facility.	***7. Installation of Meter*** *(1) No new service connection shall be given without meter. For all new LT service connections, the Licensee shall install meters with demand recording facility.* *(2) At the time of seeking a new connection / temporary service connection, the applicant shall have the option either to purchase a meter on his own as per prescribed standards, specifications and relevant Regulations or require that meter to be supplied by the Distribution Licensee. Unless the consumer elects to purchase his own meter, the Licensee shall provide meters complying statutory standards and relevant Regulations and may require the consumer to give adequate security for the price of the meter and pay the hire charges there for wherever applicable. Where the consumer elects to purchase his own meter, the Licensee shall ensure that such meter complies with relevant standards, specifications and Regulation.* *The meters required shall be tested by the Licensee at manufacturer's site and sealed duly recording their serial numbers. Such tested meters of respective serial numbers shall be made available in the open market. The details of serial numbers, make, capacity and vendor details shall be displayed in the Licensee's web-portal for information of consumers. Sufficient quantity of meters of all categories shall be made available in the market all the time. The meters so purchased from the market need not be tested again after procurement by the applicant and can be fixed in the installation straightaway.* *A tracking and recording software for all new seals shall be provided by the manufacturer of the meter so as to track total movement of seals starting from manufacturing, procurement, storage, record keeping, installation, series of inspections, removal and disposal. Only the patented seals (seal form the manufacturer who has official right to manufacture the seal) shall be used. The consumer shall claim the meter purchased by him as his asset only after it is permanently removed from the system of the Licensee.* *The Licensee shall publish and keep on updating on their web-portal about type, single phase / three phase capacity rating with respect to demand applied, specification along with the list of approved meter manufacturers and information of the places from where the consumers can purchase those meters. It shall cover all categories of LT, LT CT, HT , Bidirectional metering, solar generation, pre paid metering, ToD metering etc., on a permanent basis without any restriction in terms of period of duration for purchase, quantity of meters to be purchased by a division / circle etc.,*

8	(3) Unless the consumer elects to purchase his own meter, the Licensee shall provide meter of high quality, high precision and accuracy and may require the consumer to give adequate security for the price of the meter and pay the hire charges there for. Where the consumer elects to purchase his own meter, the Licensee shall ensure that such meter is of high quality, high precision and accuracy and shall arrange to recalibrate the same at consumer cost. (3A) In case of open access consumer, ABT compliant meter with facilities to record export and import of energy shall be provided both at the generator and consumer ends in accordance with the Central Electricity Authority (Installation and Operation of Meters) Regulations, 2006.	*(3) The Licensee shall endeavor to provide smart pre-payment meter or pre-payment meter in a phased manner giving priority to services of higher consumption/revenue. All Central/State Govt. and local body services shall be provided with smart meters with facility of pre-payment mode. In areas which do not have communication network, pre payment meters shall be provided. For temporary supply, pre-payment meters (Rechargeable card Model) shall be provided. For pre-payment meter, payment of Security Deposit is not required.* *(3A) In case of open access consumer, the Interface meters with facilities to record export and import of energy and other parameters depending upon tariff requirement shall be provided both at the generator and consumer ends and other required locations. The meters shall comply with relevant standards and specifications in accordance with the Central Electricity Authority (Installation and Operation of Meters) Regulations, 2006, as amended from time to time.*
9	**7.** (4) to (6) xxx (7) All HT services shall be provided with HT metering. Wherever existing metering of the High Tension Service connection is on the Low Tension side i.e. on the secondary side of the Transformer: (i) The average losses in the transformer shall be calculated as follows and added to the energy consumption indicated by the meter :— $\text{Average loss} = \frac{720 \times 1.0 \times C}{100}$ Units per month Where C=KVA rating of the transformer (ii) The transformer loss arrived at by the above formula shall be added to the energy consumption, even when the recorded energy consumption is nil. (iii) xxx	***7.*** *(4) to (6) xxx* *(7) All HT services shall be provided with HT metering. Wherever existing metering of the High Tension Service connection is on the Low Tension side i.e. on the secondary side of the Transformer:* *(i) The average losses in the transformer shall be calculated as follows and added to the energy consumption indicated by the meter :—* $\text{Average loss} = \frac{720 \times 1.0 \times C}{100}$ *Units per month* *Where C=kVA rating of the transformer.* *(ii) when the above formula is made applicable for the LT services of more than 112kW in accordance with sub-Regulation 3(1)(b)of this Code or the capacity of the feeding transformer is more than capacity required to feed the contracted demand of the individual consumer, the kVA rating of the transformer represented as C in the above formula shall be limited to the lower capacity of the transformer of available rating being used by the Licensee which is actually required to meet the quantum of contract demand of the individual consumer.* *The transformer loss arrived as above, shall be added to the energy consumption, even when the recorded energy consumption is nil.* *(iii) xxx*
10.	**7.** (8) xxx (9) If the consumer considers that the meter is defective, he may apply to the Licensee to have a special test carried out on the meters at any time and the cost of such a test shall be borne by the Licensee or the consumer according as the meter is found defective or correct as a result of such a test.	***7.*** *(8) xxx* (9) If a consumer considers that the meter is defective or meter readings not being commensurate with his consumption of electricity, he may apply to the Licensee to get his meter tested at Licensees' lab. The test shall be carried out by Licensee within 30 days and the cost of such a test shall be borne by the Licensee or the consumer according to the result of such test as to whether the meter is defective or correct.

10.	[1][The aforementioned special test for the disputed energy meters including the suspected/defective meters shall be carried out in the Third Party testing laboratory accredited by National Accreditation Board for Testing and Calibration Laboratories (NABL) and till such time the Third Party Meter Testing Arrangement is established, the licensee shall have the special test conducted by the Chief Electrical Inspector to Government of Tamil Nadu]. The meter shall be deemed to be correct if the limits of error do not exceed those laid down in the relevant rules made under the Act. The consumer may also be allowed to install a check meter after recalibration by the Licensee. Such check meter shall be of high quality, high precision and high accuracy and sealed by the Licensee. Whenever the Licensee's meter becomes defective the check meter reading may be taken for billing.	*The Distribution Licensee shall convey the date and time for such test to the consumer for his presence during testing. After testing, the Licensee shall give a copy of test report to the consumer duly signed by both the Licensee and the consumer, and retain one copy as acknowledgment. However, if the consumer opts not to be present at the site for testing, the Distribution Licensee shall carry out such testing and send copy of the report to the consumer. If the consumer disputes the results of such testing and demands re–testing by third party by accepting to bear the charges for such test, the Licensee shall arrange the testing at third party testing Lab accredited by NABL from the list of third party testing agencies approved by the Commission. If it is established that the errors are beyond the specified limits and contrary to the results of the test performed by the Distribution Licensee, the costs of carrying out the tests both by the Distribution Licensee and that of the third-party testing Lab shall be reimbursed by the Distribution Licensee. However, in case it is established that the results of the test are the same as the results of the test performed by the Distribution Licensee, the cost of carrying out such test shall stand to be borne by the consumer. The meter data and test results shall be issued to the consumer and said results are final and binding on both the consumer and Distribution Licensee.* *The approved list of third party agencies approved by the Commission shall be available in various offices and the website of the Distribution Licensee.*
11.	**7.** (10) The procedure to be followed for replacement of defective/ damaged/ burnt meter shall be as follows: (i) It is the responsibility of the Licensee to replace all defective meters belonging to the licensee at his cost. (ii) Since the safe custody of the meter is the consumer's responsibility, replacement of meter due to damages shall be at the cost of consumer. (iii) The cost of replacement for burnt meters shall be met by the Licensee unless it is proved otherwise that the burning out is due to the fault of the consumer.	***7.*** *(10) The procedure to be followed for replacement of defective / damaged / burnt meter shall be as follows:* *(i) It is the responsibility of the Licensee to replace all defective meters belonging to the Licensee at his cost. The meter with defects such as stoppage of recording, stoppage of display, damage to seal, burning or damage to meter etc either on consumers complaint or upon inspection by the Distribution Licensee shall be replaced within the duration as specified by the Commission and restore supply through a new meter. The released defective meter shall be tested within 30 days in Licensee's lab. Wherever feasible, the data shall be downloaded. The records of all defective meters shall be accompanied with allied documentation of such test results. The important data downloaded such as meter reading and other data relevant to billing shall be documented in the consumer ledger. No defective meter shall be handed over to stores without testing in Licensee's lab.* *(ii) Since the safe custody of the meter is the consumer's responsibility, replacement of meter due to damages shall be at the cost of consumer.* *(iii) The cost of replacement for burnt meter shall be met by the Licensee unless it is proved otherwise that the burning out is due to the fault of the consumer.*

11		*If after investigation, it is found that the meter has become defective or burnt due to reasons attributable to the consumer, the cost of new meter and other applicable charges shall be recovered from the consumer through subsequent bills. No fee shall be charged from the consumer at the time of reporting by consumer or being noticed by Licensee that the meter is defective or burnt.* *Besides the said charges for replacement of defective/ burnt meter, necessary bill revision for the period of defect or inaccurate recording of consumption , shall be made as per provisions of this Code and the excess or deficit charges shall be adjusted in the subsequent bills with due intimation to the consumer in writing along with test results and working sheet.* *Sufficient rolling stock of meter shall be maintained in every section offices of the Licensee for timely replacement of defective meters.*
	(iv) When the meter is owned by the consumer and becomes defective / damaged or when the meter is burnt due to the fault of the consumer, it is the responsibility of the consumer to replace the meter by a healthy one, if he elects to continue to have his own meter. Otherwise the Licensee shall replace the meter and enter into an agreement for hire and collect the specified deposits.	*(iv) When the meter is owned by the consumer and becomes defective / damaged or burnt due to the fault of the consumer, it is the responsibility of the consumer to replace the meter by a healthy one, if he elects to continue to have his own meter. Otherwise the Licensee shall replace the meter, collect the specified deposits/ applicable Charges from the consumer.*
12	**7.** (1) to (10) xxx	***7.*** *(1) to (10) xxx* *(11) In case of single phase meters, the consumer shall ensure there is no common neutral or phase or looping of neutral or phase of two or more consumers on consumer side wiring. If such common neutral or phase or looping of neutral or phase comes to the notice of the Licensee or if the earth leakage indication is displayed in the meter, the Licensee shall inform the consumer in writing advising him to rectify the defect to ensure proper recording of consumption.*
13	**8. Meter Reading, Billing and intervals** (1) xxx (2) xxx (3) (*blank)*	***8. Meter Reading, Billing and intervals*** *(1) xxx* *(2) xxx* *(3) The meter shall be read at least once in every billing cycle in urban as well as rural areas by an authorized representative of the Distribution Licensee. Services of all status such as existing services, newly released services during previous billing cycle, service remaining under disconnection etc., shall be covered in the regular assessment of such periodicity. In case of smart meters, the meters shall be read remotely at least once in every billing cycle and in case of other pre-payment meters; the meters shall be read by an authorized representative of the Distribution Licensee at least once in every three months. The data regarding remote assessment and billing shall be made available to the consumer, through website or mobile App or SMS, etc. Consumers having smart pre-payment meters may also be given the data access for checking their consumption.*

14	**8.** (4) In case of LT services the meter readings of last digit up to and inclusive of five units shall be rounded off to the lower multiple of ten units and the meter readings of last digit from six to nine units shall be rounded off to the higher multiple of ten units.	***8.*** *(4) Omitted.*
15	**8.** (5) In case of LT services, after taking the meter readings, the particulars of meter readings, energy consumption and charges payable will be incorporated in the consumer meter card.	***8.*** *(5) In case of LT services, after taking the meter readings, the particulars of meter readings, energy consumption and charges payable shall be incorporated in the consumer meter card.* *Wherever the particulars of meter readings, energy consumption, charges payable and last date for payment etc., are sent to the consumer through SMS and Mail to the registered mobile number and e-mail id respectively, such communication shall also be construed as Bill-cum-Notice in relation to the provisions contained under Regulations 8, 13 and 14 of this Code.* *The intimation of disconnection for any reason shall also be communicated to the consumer through SMS with details of disconnection such as date, final reading, reason for disconnection etc.*
16.	**8.** (6) Payment for energy supplied shall be made by the consumer according to the meter readings referred to above and on delivery of a bill there for in the case of High Tension consumers and incorporation of current consumption charges in the consumer meter card or assessment slip in the case of Low Tension consumers.	**8.** *(6) Procedure of generation and issue of billing:* *(a) Payment for energy supplied shall be made by the consumer according to the meter readings referred to above and on delivery of a bill therefor in the case of High Tension consumers and incorporation of current consumption charges in the consumer meter card in the case of Low Tension consumers. In case of pre-payment metering, the Distribution Licensee shall issue the bill, to the consumer, on his request.* *Pre-payment meters shall be designed to automatically cut off supply when the amount credited is exhausted. This shall however not be treated as a disconnection and the supply will be resumed whenever the meter is recharged.* *(b) The Distribution Licensee shall intimate the consumer about despatch of bill through SMS / mail, immediately after the despatch in case of HT services and within a period of not more than four working days from the date of the assessment in case of LT services. The intimation shall consist of the details of bill amount and the due date for payment.* *The Distribution Licensee shall also upload the bill on its website on the day of bill generation. The billing and payment details of minimum last one year for all consumers shall be made available on the Licensee's website Licensee's website.* *(c) The Distribution Licensee shall issue the first bill in the same billing month for HT, LT CT services and temporary services. For other services the first bill shall be issued preferably in the same billing month but not exceeding two billing months from the date of effecting a new connection where post payment meters are installed.*

16.		*(d) In case the consumer does not receive the first bill within such period or any regular bill in subsequent periods, he shall complain in writing to the Distribution Licensee and the Distribution Licensee shall issue the bill within seven days. The consumer can also get his billing details from Licensee's website.* *(e) The consumer is equally responsible to make the payment promptly and regularly for the electricity consumed by him from the Licensee.* *(f) The Distribution Licensee shall not generate more than two provisional bills for a consumer during one financial year and if the provisional billing continues for more than two billing cycles except under extraordinary situation due to force majeure, the consumer may refuse to pay the dues until bill is raised by the Distribution Licensee as per actual meter reading.* *(g) The information regarding the authority with whom grievance or complaint pertaining to bill can be lodged shall be provided along with the bill and the same shall also be made available on Distribution Licensee's website.* *(h) In case of vacation of premises, the Distribution Licensee shall arrange to take a special reading of the meter on receiving the consumer's written request and issue a final bill including all arrears till the date of billing and issue a No-Dues certificate on receiving final payment, within seven days from the receipt of such payment.*
17.	**9. Meter readings when there is changes in sanctioned demand etc.,** (1) Whenever there is change in the sanctioned demand, the change shall be effected, as far as possible, to coincide with the next meter reading. If, however, it is not possible so to do, the meter shall be reset and the maximum demand charges shall be billed proportionately for the respective periods.	**9. Meter readings when there is changes in sanctioned demand etc.,** *(1) Whenever there is change in the sanctioned demand, the change shall be effected, as far as possible, to coincide with the next meter reading. However, if it is not possible to do so, the meter shall be reset and the maximum demand charges shall be billed proportionately for the respective periods.* *Revised Test Report (RTR) shall be taken incorporating all relevant details of change in demand except temporary reduction of demand. The date of RTR shall be the date of effect of change in demand. The changes made in respect to meter/metering system such as meter details / CT details / C.T. ratio available / adopted, change in M.F meter / meter box seals etc shall be documented in the RTR clearly. However, for temporary reduction of demand effected on seasonal basis as requested by the consumer without any change in the metering system, the RTR is not necessary.* *(1A) Dynamic reduction of demand to suit the seasonal requirement is applicable to Industries other than IT services covered under IIIB and also marriage halls covered under Tariff V. Dynamic reduction of demand shall be effected on application by willing consumers. Such application shall be made online in a simple format. No inspection is necessary. The metering system need not be de-rated for such temporary reduction of demand. The reduction in demand shall take effect from the date of meter reading and MD reset of succeeding assessment following the date of application. Contracted demand shall remain the same and continue to be unaltered in their Test report and agreement. Revised test report is not necessary.*

17		*The reduction of demand shall be applicable for a minimum of one billing cycle. Reduction of demand is permissible four times in a block of one year. The period of one year block shall be reckoned from the commencement of first billing cycle from which reduction of demand from the contracted demand was sanctioned. After a particular sanction, the consumer can extend the period of reduction of demand, provided that the application is made before the date of expiry of billing cycle until which the reduction of demand stands sanctioned. Also the consumer shall have an option of applying increase in demand within the contracted limit from the date of expiry of existing sanction. In both cases such application for extension of period or revision of desired demand reduction shall also be counted for the purpose of reckoning the four times permissible in one year.* *On expiry of above period of demand reduction, the reduced demand shall automatically be restored to the original level of contracted demand on the date of the expiry. In case the recorded demand exceeds the level of reduced temporary demand in a billing cycle, the fixed charges for the entire contracted demand shall be payable for that billing cycle. If the temporary reduction of demand is made or extended for a continuous period of one year by the consumer without restoring to the contracted demand at any point of time during that year, the reduced demand at the end of such block of one year period shall be made permanent as the contracted demand with revised RTR and agreement. The metering system shall also be de-rated if necessary. Thereafter if the consumer requires additional demand, he shall apply afresh for the additional demand and the terms and all charges payable at the time of such application shall be applicable. Such applications shall be given separate priority.* *Licensee shall make required changes in the application and billing software for seamless processing and uniform implementation.* (2) xxx	*(2) xxx*
18	***10. Inaccessibility of meter for reading.*** (1) to (5) xxx	***10. Inaccessibility of meter for reading.*** *(1) to (5) xxx* *(6) In case of unforeseen constraints on the part of Licensee to carry out the assessment / force-majeure conditions, the Licensee may have the option of allowing the consumer to send the picture of meter display of the respective service connection that indicates the meter reading of billing parameters and the date of such readings, through registered mobile or e-mail to the designated officer of the Licensee.*

19.	**11. Assessment of billing in cases where there is no meter or meter is defective:** **(1)** Where supply to the consumer is given without a meter or where the meter fixed is found defective or to have ceased to function and no theft of energy or violation is suspended, the quantity of electricity supplied during the period when the meter was not installed or the meter installed was defective, shall be assessed as mentioned he	***11. Assessment of billing in cases where the meter is defective:*** *(1) Where the meter fixed is found defective or burnt or to have ceased to function and no theft of energy or violation is suspected, the quantity of electricity supplied during the period when the meter was defective, shall be assessed based on the data downloaded through CMRI from the defective meter and scrutiny of those data , load curve etc., besides taking into consideration of site condition to corroborate the assessment so made. Wherever such downloading of data could not be done, the reason for not getting the meter tested or the reason for not downloading the data from the defective or burnt meter shall be recorded and signed by the designated authority by the Licensee. Wherever the data could not be downloaded, the quantity of electricity supplied during the period when the meter was defective, shall be assessed as mentioned hereunder.*
20	(2) to (5) xxx (6) xxx (7) xxx	*(2) to (5) xxx* *(6) xxx* *In all above cases, the relevant test results and clear working sheet indicating the basis of computation of billing for the back period, the period during which the meter was found defective etc., shall be promptly communicated to the consumer in writing under acknowledgement.* *(7) xxx*
21	***14A Notice to consumers under automated meter reading system-*** Notwithstanding anything contained in regulations 5,8,13,14 and 16 of this code or any provision in the Distribution Code, wherever the Licensee implements automated meter reading system through Automated Meter Reading (AMR) Technology/ Advanced Metering Infrastructure (AMI) Technology using smart meters/ any other modern technology using smart meter, the billing details such as, Electricity Consumption, Consumption charges for electricity, the due date of payment, demand for additional Security Deposit, any other demand/information etc., shall be communicated through e-mail or SMS or Mobile App or any other electronic mode adopted by the TANGEDCO with prior intimation to the Commission and such communication shall be deemed to be the notice issued for such purposes.	***14A Notice to consumers under automated meter reading system-*** *Notwithstanding anything contained in regulations 5,8,13,14 and 16 of this code or any provision in the Distribution Code, wherever the Licensee implements automated meter reading system through Automated Meter Reading (AMR) Technology/ Advanced Metering Infrastructure (AMI) Technology using smart meters / any other modern technology using smart meter or computerized billing, the billing details such as, Electricity Consumption, Consumption charges for electricity, the due date of payment, demand for additional Security Deposit, tamper indications if displaced, any other demand / information etc., shall be communicated through e-mail or SMS to the registered mobile number/e-mail id or any other electronic mode adopted by the Licensee with prior intimation to the Commission and such communication shall be deemed to be the notice issued for such purposes.* *For this purpose, all consumers have to register their mobile number / e-mail id with the Licensee and it is the responsibility of the consumer to ensure the correctness and periodical updation of mobile number and e-mail id, so registered. However, the Licensee has to provide appropriate facility for such verification and updation.*
22	***15. Mode of Payment*** (1) The licensee shall issue receipts for every recovery or payment from the consumers.	***15. Mode of Payment*** *(1) Consumer shall have option to pay bills online or offline. The Licensee shall issue receipts for every recovery or payment from the consumers.*

23	(2) All High Tension bills, including those on account of miscellaneous charges, shall be paid within the due date fixed by the Licensee from the date of the bill. The High Tension Consumer shall pay the bills in cash or by demand draft on local bank or Cheque drawn on a bank at the headquarters of the designated authority of the distribution licensee or through electronic payment or collection through bank's branch counters or post office as stipulated by the distribution licensee. Payment for amounts exceeding Rs.2000/- (Rupees two thousand only) is preferred by DD/ Cheque. Depending on the circumstances, the designated authority of the distribution licensee shall however accept cash payments also and advise the consumer for future remittances by DD / Cheque. In case the Cheque is dishonored for any reason whatsoever, the High Tension consumer will be required to pay the High Tension bills in cash or by demand draft thereafter. If the payment is not received within fifteen days (notice period) from the expiry of the due date allowed for payment, the supply will be disconnected. However the consumer may be allowed extension of time to make payment beyond the expiry of the notice period allowed for payment, on an application made to the designated authority of the Distribution Licensee, subject to the levy of BPSC as specified in this Code. (3) Low Tension Consumers shall pay the amount due in cash or by money order or by demand draft on local bank, or by Cheque drawn on a bank where the Distribution Section Office is located or through electronic payment or collection through bank's branch counters or post office, etc. as stipulated by the distribution licensee. However, local bodies and Railways may issue Cheque on the banks situated in the place of their office and the Licensee may claim the collection charges, if any, from such consumers. Payment for amounts exceeding Rs.5000/-(Rupees five thousand only) is preferred by DD / Cheque. Depending on the circumstances, the designated authority of the distribution licensee shall however accept cash payments also and advise the consumer for future remittances by DD / Cheque. (4) xxx	*(2) All High Tension bills, including those on account of miscellaneous charges, shall be paid within the due date fixed by the Licensee from the date of the bill. The High Tension Consumer shall pay the bills through electronic mode such as RTGS / NEFT / Online money transfer for all payments of more than Rs.1000/-. Depending on the circumstances, the designated authority of the Distribution Licensee shall however accept cash payments on special occasions and unavoidable circumstances. If the payment is not received within fifteen days (notice period) from the expiry of the due date allowed for payment, the supply will be disconnected. However the consumer may be allowed extension of time to make payment beyond the expiry of the notice period allowed for payment, on an application made to the designated authority of the Distribution Licensee, subject to the levy of BPSC as specified in this Code.* *(3) Low Tension Consumers shall pay the amount due in cash or online or by money order or by demand draft on local bank, or by Cheque drawn on a bank where the Distribution Section Office is located or through electronic payment or collection through bank's branch counters or post office, etc. as stipulated by the Distribution Licensee. However, local bodies and Railways may issue Cheque on the banks situated in the place of their office and the Licensee may claim the collection charges, if any, from such consumers. Payment for amounts exceeding Rs.1000/- (Rupees one thousand only) is preferred by DD / Cheque / online payment. Depending on the circumstances, the designated authority of the Distribution Licensee shall however accept cash payments also and advise the consumer for future remittances by DD / Cheque / online payment.* *(4) xxx*
24	**16. Option to pay charges in advance** The consumers who opt for depositing electricity charges in advance shall be permitted to do so. Such deposits shall be recorded in the consumer meter card. Interest at Bank rate or such rate as specified by the Commission shall be calculated on such balance advance amount and credited to the consumer Ledger accounts.	***16. Option to pay charges in advance*** *The consumers who opt for depositing electricity charges in advance shall be permitted to do so. Such deposits shall be recorded in the consumer meter card. Interest at Bank rate or such rate as specified by the Commission shall be calculated on such balance advance amount and credited to the consumer Ledger accounts.* *If the meagre balance (difference between the billed electricity charges and higher amount paid by the consumer) could not be given to the consumer due to scarcity of small denomination of amount or the consumer had prepared cheque with excess amount inadvertently, the due balance may be credited to the advance of the consumer account with the oral consent of the consumer.*

25	**17. Agreement with respect to Supply: Issues on recovery of charges** (1) *to (6) xxx* *(7)* The licensee shall on receipt of the notice referred to in sub–regulation (3) make such adjustment of the dues due to him from the consumer as may be necessary to clear the dues from the consumer against the security deposit or additional security deposit or any other deposit made by the consumer, and after making such adjustment, refund the balance deposit, if any, to the consumer within three months from the date of expiry of the notice period referred to in sub – regulation (3)**.**	***17. Agreement with respect to Supply: Issues on recovery of charges*** *(1) to (6) xxx* *(7) The Licensee shall on receipt of the notice referred to in sub–regulation (3) make such adjustment of the dues due to him from the consumer as may be necessary to clear the dues from the consumer against the Security Deposit or additional Security Deposit or any other deposit made by the consumer, and after making such adjustment, refund the balance deposit, if any, to the consumer within three months from the date of expiry of the notice period referred to in sub-regulation (3) by direct credit to the account of consumer under advice to him, if bank account details are provided.*
26	***17.*** *(8) Where any consumer has more than one service connection, if he defaults in the payment of dues relating to any one of the service connections, the licensee may cause other service connections in the name of the consumer to be disconnected on issuing proper notice till all the arrears due for all the service connections are paid, notwithstanding the fact that the service connections are covered under separate agreements."* *9(a) to 9(c) xxx*	***17.*** *(8) Where any consumer has more than one service connection, if he defaults in the payment of dues relating to any one of the service connections that includes dues pointed out by validated audit, charges due to theft of energy, unauthorised use of electricity, violation, dues relating to deposit contribution works, etc., the Licensee may include such dues in other service connection(s) in the name of the consumer and cause those service connection(s) to be disconnected after issuing proper notice with working sheet and quoting the authority under which such dues are payable, till all the arrears due for all the service connections are paid, notwithstanding the fact that the service connections are covered under separate agreements.* *9(a) to 9(c) xxx*
27	**19. Unauthorized use of Electricity – Investigation and Enforcement Provisions** (1) to (5) xxx (6) The assessment under this section shall be made at a rate equal to twice the tariff applicable for the relevant category of services specified in sub-section (5). Explanation: xxx	***19. Unauthorized use of Electricity – Investigation and Enforcement Provisions*** *(1) to (5) xxx* *(6) The assessment under this section shall be made at a rate equal to twice the tariff applicable for the relevant category for which the load was found to have been misused for the period specified in sub-section (5) excluding the cost of supplied electricity already paid by the consumer for the units / demand recorded in the meter for the period for which such assessment is made. The formula for the assessment is given in FORM 8-A in Appendix to this Code.* *Explanation:* *xxx*
28	***22. Restoration of supply of electricity*** (1) The Licensee shall restore the supply to the service immediately and in any case not exceeding twelve hours in the case of urban areas and twenty four hours in the case of rural areas on recovery of electricity charges or such other sums together with any expenses incurred by the Licensees in cutting off and re-connecting the supply. (2) to (5) xxx	***22. Restoration of supply of electricity*** *(1) The Licensee shall restore the supply to the service immediately and in any case not exceeding six working hours on receipt of electricity charges or such other dues and other charges as applicable.* (2) to (5) xxx

29	**22 (6).** (i) xxx (ii) The authorized Officer of the Licensee may permit such consumer to pay the outstanding in installments and to avail reconnection on receipt of 40% of the total arrears outstanding after closing of account due to the licensee, which include – (a) Arrears on the date of disconnection (b) Tariff minimum and meter rent for the period of six months from the date of disconnection (including the notice period) (c) The applicable BPSC / interest up to the date of payment. (d) The balance 60% of the amount shall be collected in ten monthly installments. (e) In addition to the above, the full amount of Security Deposit adjusted while closing of account shall be collected in one lump sum before effecting new service connection." Explanation: For the purpose of removal of doubts, it is hereby declared that any tariff minimum collected by the Tamil Nadu Electricity Board prior to the date of publication of the Tamil Nadu Electricity Supply (Amendment) Code, 2006 in the *Tamil Nadu Government Gazette,* that is to say prior to 21st June 2006 on the basis of sub-regulation (6) as it stood before the said amendment need not be refunded by the Tamil Nadu Electricity Board.	***22 (6).*** *(i) xxx* *(ii) The authorized Officer of the Licensee may permit such consumer to pay the outstanding in installments and to avail reconnection on receipt of 40% of the total arrears outstanding after closing of account due to the Licensee, which include –* *(a) Arrears on the date of closure of accounts.* *(b) The applicable BPSC / interest up to the date of payment.* *(c) The balance 60% of the amount shall be collected in ten monthly installments. In addition to the above, the full amount of Security Deposit adjusted while closing of account shall be collected in one lumpsum along with the aforesaid portion of 40% before effecting restoration of supply.* *Explanation: For the purpose of removal of doubts, it is hereby declared that any tariff minimum collected by the Tamil Nadu Electricity Board prior to the date of publication of the Tamil Nadu Electricity Supply (Amendment) Code, 2006 in the Tamil Nadu Government Gazette, that is to say prior to 21st June 2006 on the basis of sub-regulation (6) as it stood before the said amendment need not be refunded by the Tamil Nadu Electricity Board.*
30.	**23(AA) The Procedure for assessment of the electricity charges, disconnection of supply of electricity and removing the meter, electric line, electric plant and other apparatus in case of theft of electricity as detailed in section 135 of the Act is given below:** (1) to (6) xxx (7) Where it is established that there is a case of theft of energy, the authorized officer shall assess the quantum of energy consumption for the past twelve months as per the assessment formula given in Form 8 in Appendix to this code and prepare provisional assessment order for the charges for such consumption at two times of the tariff applicable (i.e., the applicable tariff for the purpose for which the pilfered energy was used) and serve on the accused person under proper receipt. The authorized officer may reduce the period for such billing if it is established by the facts or documents submitted in the representation of the accused person or any such other evidence observed by the authorized officer. Wherever electronic meters are installed and the load curves are studied periodically, the period of theft could be limited to the exact period as could be determined scientifically. The authorized officer shall record reasons for such reduction in the period of billing, in the assessment order. The energy consumption arrived at as per the formula referred to in the said Form 8 will be charged excluding the energy consumption recorded by the meter as per the rates specified by the Commission's Tariff Order.	***23(AA) The Procedure for assessment of the electricity charges, disconnection of supply of electricity and removing the meter, electric line, electric plant and other apparatus in case of theft of electricity as detailed in section 135 of the Act is given below:*** *(1) to (6) xxx* *(7) Where it is established that there is a case of theft of energy, the authorized officer shall assess the quantum of energy consumption for the past twelve months as per the assessment formula given in FORM 8 in Appendix to this code and prepare provisional assessment order for the charges for such consumption at two times of the tariff applicable (i.e the applicable tariff for the purpose for which the pilfered energy was used) and serve on the accused person under proper receipt. The authorized officer may reduce the period for such billing if it is established by the facts or documents submitted in the representation of the accused person or any such other evidence observed by the authorized officer. Wherever electronic meters are installed and the load curves are studied periodically, the period of theft could be limited to the exact period as could be determined scientifically. The authorized officer shall record reasons for such reduction in the period of billing, in the assessment order. The energy consumption arrived at as per the formula referred to in the said FORM 8 will be charged excluding the energy consumption recorded by the meter as per the rates specified by the Commission's Tariff Order.*

	Provided that if the quantum of energy consumption is recorded in the meter installed by the Distribution Licensee in the consumer's premises, the authorized officer shall arrive such energy consumption as per the assessment formula given in Form 8-A in Appendix to this Code. (8) to (22) xxx	*Provided that Section 135 shall be invoked only for the following cases involving the offence of theft of energy:* *(iv) Cases where the energy is not recorded/ partially recorded in the meter.* *(v) Cases of illegal restoration of disconnected service supply to disconnected service in any manner.* *(vi) Cases of unauthorized usage of power from agricultural and Hut services.* *(8) to (22) xxx*
31.	**Form 8** **[See Regulation 23 (AA) (7)]** **FORMULA TO ASSESS THE QUANTUM OF ENERGY IN CASE OF THEFT OF ELECTRICITY** I.(A) to (D) xxx (E) i. xxx. ii (a) For High Tension Service connections, the maximum demand shall be assessed as 75% of the total connected load at the time of inspection subject to a minimum of the contracted demand. A power factor of 0.90 lag may be used for conversion of KVA or KW. (b) Assess**m**ent of demand charges:- Twice the appropriate H.T. tariff rate for maximum demand.	***FORM 8*** ***[Refer Regulation 23 (AA) (7)]*** ***FORMULA TO ASSESS THE QUANTUM OF ENERGY IN CASE OF THEFT OF ELECTRICITY*** **I.***(A) to (D) xxx* *(E) i. xxx.* ***ii Assessment of quantum of demand charges in HT service and fixed charges in LT services:*** *(a) For all Service connections, the maximum demand shall be assessed as 75% of the total connected load at the time of inspection subject to a minimum of the sanctioned / contracted demand. A power factor of 0.90 lag for HT and 0.85 lag for LT shall be used for conversion between kVA and kW.* *(b) Assessment of demand charges for HT services:-* *Twice the appropriate H.T. tariff rate for maximum demand.* *(c) Assessment of fixed charges for LT services:-* *Twice the appropriate LT tariff rate for fixed charges.*
32	**II. Assessment of quantum of energy consumption in a case of illegal restoration of supply to a disconnected service connection shall be as follows**: (A) The period of assessment will be for twelve months immediately preceding the date of detection of the violation or for the period from the date of disconnection of the service connection to the date of detection of the illegal restoration, whichever period is less: (B) The quantum of energy consumed for assessment of charges for theft of electricity in accordance to sub-regulation 7 of regulation 23AA shall be as follows: (i) When the meter is healthy:- Units recorded from the date of disconnection of the service connection to the date of detection. (ii) When the meter is found defective:- Quantum of energy computed (U) using the formula above.	***II. Assessment of quantum of energy consumption and charges in a case of illegal restoration of supply to a disconnected service connection shall be as follows:*** *(A) The period of assessment will be for twelve months immediately preceding the date of detection of the illegal restoration of supply or for the period from the date of disconnection of the service connection to the date of detection of the illegal restoration, whichever period is less:* *(B) The quantum of energy for assessment and computation of assessment charges for illegal restoration of supply shall be as follows:* *(i) When the meter is healthy:- Units recorded from the date of disconnection of the service connection to the date of detection. The assessment shall be equal to twice the tariff applicable that includes both the energy and demand / fixed charges. The tariff charges for the units/demand recorded in the meter for the period for which the assessment is made shall not be collected. If collected, the same shall be credited to the consumer account.* *(ii) When the meter is found defective:- Quantum of energy consumed by illegal restoration of energy (U) shall be computed using the formula above given in part I.*

	(C) The assessment shall be at two times the applicable energy charges and two times the applicable demand charges where applicable.	*(C) The assessment shall be at two times the applicable charges of electricity that includes both energy charges and demand/fixed charges.* *(D) In addition to the above assessment charges, all other procedures laid down under sub-regulation 23 (AA) of this Code including the stipulations in regard to compounding the offence shall be followed.* *Note: The applicable tariff as specified for assessment is the tariff in force during such period of assessment for all the above cases dealt under FORM 8.*
33.	**Form 8-A** **[(See proviso of clause 23 (AA)(7)]** **FORMULA TO ASSESS THE QUANTUM OF MISUSED ENERGY IN THE CASE WHOEVER DISHONESTLY USES ELECTRICITY FOR THE PURPOSE OTHERTHAN FOR WHICH THE USAGE OF ELECTRICITY WAS AUTHORIZED AS REFERRED IN SECTION 135 (1)(e) OF THE ELECTRICITY ACT 2003** ***(i) Quantum of misused energy :*** ***U = a x (b / c) kWh*** where a — Total consumption recorded during the preceding period of existence of such violations limited to a specified period b – misused load found at the time of inspection c – total connected load found at the time of inspection (ii) **Penal charges on account of unauthorized use of energy** = (2 x U x d) – (U x e) where U - Quantum of misused energy, kWh d - Tariff of unauthorized use e - Tariff of authorized use **(iii) Period of unauthorized use** The authorized officer may take into account the following and arrive at the least period (duration) of unauthorized use of electricity: (a) for the period of twelve months (b) for the period from the date of prior inspection if any by the licensee's officer to the date of detection (c) from the date of service connection to the date of detection (d) wherever electronic meters are installed and the load curves are studied periodically, the period of unauthorized use of electricity could be limited to the exact period as could be determined scientifically. (e) Based on the valid document produced by the accused person. (f) For any other reasonable period as assessed by the authorized officer to the best of his judgment.	***FORM 8-A*** ***[Refer Regulation 19 (6)]*** ***FORMULA OF ASSESSMENT TOWARDS UNAUTHORIZED USE OF ELECTRICITY UNDER SECTION 126 OF THE ELECTRICITY ACT 2003.*** ***(i) Quantum of misused energy :*** ***U = a x (b / c) kWh*** *where* *a – Total consumption recorded during the preceding period of existence of such violations limited to a specified period* *b – misused load found at the time of inspection* *c – total connected load found at the time of inspection* *(ii)* ***Amount of assessment on account of unauthorized use of energy*** *= [(2 x U x d) – (U x e)] + [(2 x b x F_1) – (b x F_2)]* *where* *U - Quantum of misused energy, kWh* *d - Tariff of unauthorized use* *e - Tariff of authorized use* *F_1- Demand / fixed charges of Unauthorized use* *F_2- Demand / fixed charges of authorized use* *b - Quantum of unauthorised demand in kW / kVA* *(iii) Period of unauthorized use* *The authorized officer may take into account the following and arrive at the least period (duration) of unauthorized use of electricity:* *(a) for the period of twelve months* *(b) for the period from the date of prior inspection if any by the Licensee's officer to the date of detection* *(c) from the date of service connection to the date of detection* *(d) wherever electronic meters are installed and the load curves are studied periodically, the period of unauthorized use of electricity could be limited to the exact period as could be determined scientifically.* *(e) Based on the valid document produced by the accused person.* *(f) For any other reasonable period as assessed by the authorized officer to the best of his judgment.* *Note: The tariff for unauthorized use (d) as specified in the above formulae for assessing the charges is the tariff in force during such period of assessment*

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Form 9

[See Regulation 23 (AA) (8)]

Provisional Assessment order for *theft of energy under section 135/138 of the Electricity Act, 2003.

From
(The Authorised Officer),

To
(Full address of the person in whose name the service connection stands
(or) occupier
(or) enjoyer, etc.)

Letter No.……,dated……

Sir,

Sub: *Theft of energy – Detected in SC No…… Provisional Assessment Order - Reg.

Ref: Inspection Report dated …

1.0 On……..(the day, month, year of inspection) at…….. (time) hours the service connection in SC No…….. located at Door No……., in SF No……. (Full address of the service connection) which is/was in the name of Thiru/Thirumathy …… was inspected by me in the presence of you/your representative Thiru/ Thirumathy ……..

2.0 *During the inspection it was found that an offence of theft of energy has been committed …… …… …… ……

(describe the actual mode of theft with details of artificial means found in the service/unauthorized reconnection of a disconnected service connection). By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the licensee.

The above said illegal abstraction, consumption and use of energy is punishable under section 135 of the Electricity Act 2003.

3.0 The approximate loss caused by you due to dishonest abstraction/illegal restoration of supply is assessed at Rs……. (Rupees ……) in accordance with the regulations of the Tamil Nadu Electricity Supply Code, and a working sheet is enclosed herewith.

FORM 9

[Refer Regulation 23 (AA) (8)]

Provisional Assessment order for *theft of energy / Illegal restoration of supply under section 135 / 138 of the Electricity Act, 2003.

From
(The Authorised Officer),

To
(Full address of the person in whose name the service connection stands
(or) occupier
(or) enjoyer, etc.)

Letter No.……,dated……

Sir,

*Sub: *Theft of energy / Illegal restoration of supply – Detected in HT/LT SC No……Tariff….Provisional Assessment Order - Reg.*

Ref: Inspection Report dated …

*1.0 On……..(the day, month, year of inspection) at……..(time) hours the service connection in SC No…….. located at Door No……., in SF No……. (Full address of the service connection) which is/was in the name of Thiru/ Thirumathy …… */and its installation being occupied / used by …….. was inspected by me in the presence of you/your representative Thiru/Thirumathy ……..*

*2.0 *During the inspection it was found that an offence of theft of energy/ Illegal restoration of supply has been committed …… …… ……*

(describe the actual mode of theft with details of artificial means found in the service/unauthorized reconnection of a disconnected service connection). By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the Licensee.

The above said illegal abstraction, consumption and use of energy is punishable under section 135 / 138 of the Electricity Act 2003.

The service connection was disconnected on the date of detection of above offence.

3.0 The approximate loss caused by you due to dishonest abstraction/illegal restoration of supply is assessed at Rs……. (Rupees ….……) in accordance with the regulations of the Tamil Nadu Electricity Supply Code, and a working sheet is enclosed herewith.

	4.0 The assessment amount as referred to above shall be paid within 7 working days from the date of receipt of this order. 5.0 If you are desirous of filing objections, if any, against the provisional assessment, you may send your explanation to the address of the undersigned with sufficient proof, within seven days from the date of receipt of this order. You may also choose to appear in person or through an authorised representative with relevant documents for an enquiry before the undersigned. 6.0 You are requested to acknowledge the receipt of this order immediately. Yours **F**aithfully, (*Authorised Officer*) Encl: Copies of 1. Report 2. Statement Recorded (if any) 3. Mahazar Copy submitted to: ……. Copy to He is instructed to arrange to serve this order to the accused person with dated acknowledgement and send the acknowledgement to this office. * Strike out whichever is not applicable.	*4.0 The assessment amount as referred to above shall be paid within 7 working days from the date of receipt of this order.* *5.0 If you are desirous of filing objections, if any, against the provisional assessment, you may send your explanation to the address of the undersigned with sufficient proof, within seven days from the date of receipt of this order. You may also choose to appear in person or through an authorised representative with relevant documents for an enquiry before the undersigned within 10 days from the date of receipt of this order.* *6.0 You are requested to acknowledge the receipt of this order immediately.* *Yours Faithfully,* *(Authorised Officer)* *Encl: Copies of* *1. Inspection Report* *2. Statement Recorded (if any)* *3. Mahazar* *4. Working sheet as per FORM 8* *Copy submitted to: ……..* *Copy to* *He is instructed to arrange to serve this order to the accused person with dated acknowledgement and send the acknowledgement to this office.* ** Strike out whichever is not applicable. (If offence is theft of energy, section 135 is applicable, strike out section 138. If offence is illegal restoration of supply, both section 135 and 138 are applicable.*
35	Form 10 [See Regulation 23 (AA) (15)] Final Assessment order for *theft of energy under section 135 of the Electricity Act, 2003. From To (The Authorised Officer), (Full address of the person in whose name the service connection stands (or) occupier (or) enjoyer, etc.) Letter No……,dated…… Sir, Sub: *Theft of energy– Detected in SC No……. Final Assessment Order - Reg. Ref: 1. Provisional Assessment Order… *2. Your reply…. ***	***FORM 10*** ***[Refer Regulation 23 (AA) (15)]*** ***Final Assessment order for *theft of energy/Illegal restoration of supply under section 135/138 of the Electricity Act, 2003.*** *From To* *(The Authorised Officer), (Full address of the person in whose name the service connection stands (or) occupier (or) enjoyer, etc.)* *Letter No……,dated……* *Sir,* *Sub: *Theft of energy/Illegal restoration of supply – Detected in HT/LT SC No……..Tariff**….** - Final Assessment Order - Reg.* *Ref: 1. Provisional Assessment Order…* **2. Your reply….* ***

	1.0 *On……..(the day, month, year of inspection) at…….. (time) hours the service connection SC No…….. located at Door No……, in SF No……. (Full address of the service connection) which is/was in the name of Thiru / Thirumathy …… was inspected by me in the presence of you/your representative Thiru/Thirumathy …….	*1.0 *On……..(the day, month, year of inspection) at…….. (time) hours the service connection bearing SC No…….. located at Door No……., in SF No……. (Full address of the service connection) which is/was in the name of Thiru / Thirumathy …… /and its installation being occupied / used by……..was inspected by me in the presence of you/your representative Thiru/Thirumathy ……*
	2.0 *During the inspection it was found that an offence of theft of energy/Illegal restoration of supply has been committed …… …… …… … (describe the actual mode of theft with details of artificial means found in the service/unauthorized reconnection of a disconnected service connection). By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the licensee. The above said illegal abstraction, consumption and use of energy is punishable under section 135 of the Electricity Act 2003.	*2.0 *During the inspection it was found that an offence of theft of energy/Illegal restoration of supply has been committed …… …… …… (describe the actual mode of theft with details of artificial means found in the service/ unauthorized reconnection of a disconnected service connection). By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the Licensee. The above said illegal abstraction, consumption and use of energy is punishable under section 135/138 of the Electricity Act 2003.*
	3.0 A provisional assessment was issued to you in the reference cited and you were allowed to file your objections and to appear for a hearing as per the Tamil Nadu Electricity Supply Code.	*3.0 A provisional assessment was issued to you in the reference cited and you were allowed to file your objections and to appear for a hearing as per the Tamil Nadu Electricity Supply Code.*
	4.0 On a detailed examination and on consideration of your explanation offered, facts and records furnished in your letter / during the personal hearing, it is found that the theft of electricity has been committed by you as described below:- (A reasoned/detailed order to be passed by the Officer concerned taking into consideration of the theft of electricity noticed, explanation and the findings, etc., Reference to be made to the materials in support of the claim of the licensee about the existence of theft, the involvement or the role of the consumer with reference to the said theft of energy, submissions made by the accused person in his written reply as well as during his personal hearing, and reasons for acceptance and rejection of the same).	*4.0 *As you have not made any objection or representation/ On detailed examination and on careful consideration of your explanation offered, facts and records furnished in your letter / during the personal hearing, the final order is issued herewith as described below:-* *(A reasoned / detailed speaking order to be passed by the Officer concerned after thorough analysis of the theft of electricity noticed, inspection report , explanation offered and the findings, etc., Reference to be made to the materials in support of the claim about the existence of theft, the involvement or the role of the consumer with reference to the said theft of energy, relevant rules and regulations relating to consumers' duty and obligations, submissions made by the accused person in his written reply as well as during his personal hearing, documents / materials submitted by him etc., and reasons for acceptance and rejection of the same)*
	5..0 * The loss caused by you due to dishonest abstraction/illegal restoration of supply is assessed at Rs……(Rupees ……) in accordance with the regulations of the Tamil Nadu Electricity Supply Code, and a working sheet is enclosed herewith. This assessment amount referred to above shall be paid within seven working days from the date of receipt of this order. You are requested to acknowledge the receipt of this order immediately. Yours Faithfully, (Authorised Officer)	*5..0 * The loss caused by you due to above explained theft of energy illegal restoration of supply is finally assessed at Rs……(Rupees ……) in accordance with the regulations of the Tamil Nadu Electricity Supply Code, and a working sheet is enclosed herewith. This final assessment amount shall be paid within seven working days from the date of receipt of this order.* *You are requested to acknowledge the receipt of this order immediately.* *Yours Faithfully,* *(Authorised Officer)*

	Encl: Copies of 1. Report 2. Statement Recorded (if any) 3. Mahazar 4. Provisional Assessment Order. Copy submitted to: He is instructed to arrange to serve the order to the accused person with dated acknowledgement and send the same to this office.	Encl: Copies of *1. Inspection Report* *2. Statement Recorded (if any)* *3. Mahazar* *4. Provisional Assessment Order.* *5. Working sheet as per FORM 8* *Copy submitted to:* *He is instructed to serve the order to the accused person with dated acknowledgement and send the same to this office.* ** Strike out whichever is not applicable. (If offence is theft of energy, section 135 is applicable, strike out section 138. If offence is illegal restoration of supply, both section 135 and 138 are applicable)*
36	**Form 11** **[see Regulation 23(AA) (22)]** **Compounding of offence under section 152 of the Electricity Act, 2003.** From (The Authorized Officer) To Full address of the person in whose Name the service connection stands (or) occupier (or) enjoyer, etc.) Letter No……..,dated…… Sir, Sub: *Theft of energy – Detected in SC No…- Order on Compounding Amount - Reg. 1.0 *On……..(the day, month, year of inspection) at……..(time) hours the service connection in *SC* No…….. located at Door No……, in SF No…… (Full address of the service connection) which is/was in the name of Thiru/Thirumathy …… was inspected by me in the presence of you/your representative…….. Thiru/ Thirumathy…… 2.0 *During the inspection it was found that an offence of theft of energy has been committed..... ..... (describe the actual mode of theft with details of artificial means found in the service/authorized reconnection of a disconnected service connection). By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the lecensee.	***FORM 11*** ***[Refer Regulation 23(AA) (22)]*** ***Compounding of offence under section 152 of the Electricity Act, 2003.*** *From (The Authorized Officer),* *To Full address of the person in whose name the service connection stands (or) occupier (or) enjoyer, etc.)* *Letter No……..,dated……* *Sir,* *Sub: *Theft of energy / Illegal restoration of supply – Detected in HT/LT SC No…… Tariff….- Order on Compounding Amount - Reg.* *1.0 *On……..(the day, month, year of inspection) at……..(time) hours the service connection No…….. located at Door No……., in SF No……. (Full address of the service connection) which is / was in the name of Thiru / Thirumathy …… / and its installation being occupied / used by……..was inspected by me in the presence of you/your representative. Thiru/ Thirumathy……..* *2.0 *During the inspection it was found that an offence of theft of energy/ Illegal restoration of supply has been committed…… (describe the actual mode of theft with details of artificial means found in the service/unauthorized reconnection of a disconnected service connection). By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the Licensee.*

36	3.0 The above said illegal abstraction, consumption and use of energy is punishable under section 135 / 138 of the Electricity Act, 2003. 4.0 As you have opted for compounding of offence under section 152 of the Electricity Act, 2003, you are requested to pay Rs…….. (Rupees……) towards the compounding of the offence as mentioned above. Yours Faithfully, *(Authorized officer)* Encl: Working sheet. Copy to …….	*3.0 The above said illegal abstraction, consumption and use of energy is punishable under section 135 / 138 of the Electricity Act, 2003.* *4.0 As you have opted for compounding of offence under section 152 of the Electricity Act, 2003, you are requested to pay Rs…….. (Rupees……..…) towards the compounding of the offence as mentioned above.* *Yours faithfully,* *(Authorized officer)* *Encl: Working sheet.* *Copy to* ***……*** ** Strike out whichever is not applicable. (If offence is theft of energy, section 135 is applicable, strike out section 138. If offence is illegal restoration of supply, both section 135 and 138 are applicable)*
37.	**Form-12** **Provisional Assessment order for unauthorised use of electricity under section 126 of the Electricity Act, 2003.** From To (The Assessment Officer),(Full address of the person in whose name the service connection stands (or) occupier (or) enjoyer, etc.) Letter No……..,dated……. Sir, Sub:- Unauthorised use of Electricity detected in HT/LT SC No…… of Tariff No…… - Section 126 of the Electricity Act, 2003 – Issue of Provisional Assessment Order - Reg. Ref:- Inspection Report dated ……. 1.0 *On…….. (the day, month, year of inspection) at …….. (time) hours, the electricity service connection No…….. located at Door No……, in SF No…… (Full address of the service connection) which is/was in the name of Thiru/ Thirumathy …… was inspected by me in the presence of you/your representative Thiru/ Thirumathy …….. 2.0 During the inspection, unauthorised use of electricity was noticed as detailed below: …… (describe the actual mode. unauthorised use of electricity as per the section 126 of the Act). The above said unauthorised use of electricity is punishable under section 126 of the Electricity Act, 2003. 3.0 A copy of the inspection report is enclosed. A copy of the mahazar prepared at your premises and acknowledgement obtained from you / your representative has already been furnished to you / your representative. A copy of the statement recorded and signed by you / your representative is also enclosed.	***FORM 12*** ***[Refer Regulation 19(A)(4)]*** ***Provisional Assessment order for unauthorised use of electricity under section 126 of the Electricity Act, 2003.*** *From To* *(The Assessment Officer), (Full address of the person in whose name the service connection stands (or) occupier (or) enjoyer, etc.)* *Letter No……..,dated…….* *Sir,* *Sub:- Unauthorised use of Electricity detected in HT/LT SC No…… Tariff–…… - Section 126 of the Electricity Act, 2003 – Issue of Provisional Assessment Order - Reg.* *Ref:- Inspection Report dated …….* *1.0 On…….. (the day, month, year of inspection) at …….. (time) hours, the electricity service connection No…….. located at Door No……., in SF No…… (Full address of the service connection) which is/was in the name of Thiru/ Thirumathy ……./ and its installation being occupied / used by …… was inspected by me in the presence of you/your representative Thiru/Thirumathy ……..* *2.0 During the inspection, unauthorised use of electricity was noticed as detailed below:* *…… (describe the actual mode of unauthorised use of electricity as per the section 126 of the Act). The above said unauthorised use of electricity is punishable under section 126 of the Electricity Act, 2003.* *3.0 A copy of the inspection report is enclosed. A copy of the mahazar prepared at your premises and acknowledgement obtained from you / your representative has already been furnished to you / your representative. A copy of the statement recorded and signed by you / your representative is also enclosed.*

	4.0 You are hereby called upon to stop the said unauthorised use of electricity also remove the equipment used for the said unauthorised use of electricity immediately. 5.0 The provisional assessment works out to Rs…… as per the sub-sections (5) and (6) of section 126 of the Electricity Act, 2003. and a working sheet is enclosed. The amount shall be deposited within seven days from the date of receipt of this order, Otherwise, the Service Connection is liable to be disconnected without further notice. 6.0 If you are desirous of filing objections, if any, against this provisional assessment, you may send your explanation to the address of the undersigned with sufficient proof, within seven days from the date of receipt of this order. You may also choose to appear in person or through an authorised representative with relevant documents for an enquiry before the undersigned. 7.0 If no objection is received from you against this provisional assessment order within the stipulated period or if the objection received is found to be not convincing, further action to pass final order of assessment shall be taken without further notice. 8.0 You are requested to acknowledge the receipt of this order with other enclosures immediately. Yours Faithfully, (Assessment Officer) Encl: Copies of 1. Report 2. Statement Recorded (if any) 3. Mahazar Copy submitted to: ……. Copy to: He is instructed to arrange to serve this order to the consumer/occupier/enjoyer with dated acknowledgement and send the acknowledgement to this office.	*4.0 You are hereby called upon to remove the cause of unauthorised use of electricity immediately if not done already and confirm the same by written intimation.* *5.0 The charges payable by you towards the above unauthorized use of electricity is provisionally assessed at Rs…… as per the sub-sections (5) and (6) of section 126 of the Electricity Act, 2003. The working sheet is enclosed. The amount shall be paid within seven days from the date of receipt of this order, failing which the Service Connection shall become liable to be disconnected.* *6.0 If you are desirous of filing objections, if any, against this provisional assessment, you may send your explanation to the address of the undersigned with sufficient proof, within seven days from the date of receipt of this order. You may also choose to appear in person or through an authorised representative with relevant documents for an enquiry before the undersigned within the same duration of seven days.* *7.0 If no objection/ representation is received from you against this provisional assessment order within the stipulated period, the final order of assessment shall be passed accordingly.* *8.0 You are requested to acknowledge the receipt of this order immediately.* *Yours faithfully,* *(Assessment Officer)* *Encl: Copies of* *1. Inspection Report* *2. Statement Recorded (if any)* *3. Mahazar* *4. Working sheet as per FORM 8A* *Copy submitted to: ……..* *Copy to:* *He is instructed to serve this order to the consumer/ occupier/enjoyer with dated acknowledgement and send the acknowledgement to this office.*
38	**Form-13** **Final order of Assessment for unauthorised use of electricity under section 126 of the Electricity Act, 2003.** From To (The Assessment Officer), (Full address of the person in whose name the service connection stands (or) occupier (or) enjoyer, etc.) Letter No……..,dated…….	***FORM 13*** ***(Refer Regulation 19(3) and 19(A)(4))*** ***Final order of Assessment for unauthorised use of electricity under section 126 of the Electricity Act, 2003.*** *From To* *(The Assessment Officer), (Full address of the person in whose name the service connection stands (or) occupier (or) enjoyer, etc.)* *Letter No……..,dated……..*

	Sir, Sub:- Unauthorised use of Electricity detected in HT/LT SC No…… of Tariff No…… - Section 126 of the Electricity Act, 2003 – Issue of Final Assessment Order - Reg. Ref:- 1. Inspection Report dated …… *2. Your reply…. 1.0 On……..(the day, month, year of inspection) at …….. (time) hours, the electricity service connection No…….. located at Door No……, in SF No……. (Full address of the service connection) which is/was in the name of Thiru/ Thirumathy …… was inspected by …….. (Designation of the Assessment Officer) in the presence of you/your representative Thiru / Thirumathy …… During the inspection, unauthorised use of electricity was noticed as detailed below: …… (describe the actual mode of unauthorised use of electricity as per the section 126 of the Act). 2.0 A provisional Assessment notice has been issued by the …… (Designation of the Assessment Officer) *vide* reference (1) cited above as to why you should not be held liable for the above unauthorised use of electricity and as to why compensation charges should not be levied and collected as per the sub-sections (5) and (6) of the section 126 of the Electricity Act, 2003 3.0 On a detailed examination and on consideration of your explanation offered in your letter cited in reference (2) and with regard to the facts and records furnished by you, it is found that the unauthorised use of electricity has been committed as described below: (A reasoned/detailed order to be passed by the Officer concerned of taking into consideration the unauthorised use of electricity noticed, inspection report, explanation and the finding. Reference to be made to the materials in support of the claim of the licensee about the existence of any type of irregularities, the involvement or the role of the consumer with reference to the said irregularities unauthorized use of electricity. 4.0 The Compensation charges payable by you under sub-sections (5) and (6) of the section 126 of the Electricity Act, 2003 is worked out to Rs…… (Rupees ……only). The detailed working sheet is enclosed herewith. The said amount shall be paid to the TANGEDCO within 15 days from the date of receipt of this notice.	*Sir,* *Sub:- Unauthorised use of Electricity detected in HT/LT SC No…… Tariff-…… - Section 126 of the Electricity Act, 2003 – Issue of Final Assessment Order - Reg.* *Ref:- 1. Inspection Report dated ……..* **2. Your reply….* *1.0 On…….. (the day, month, year of inspection) at …….. (time) hours, the electricity service connection No…….. located at Door No……., in SF No…….. (Full address of the service connection) which is/was in the name of Thiru/ Thirumathy …… / *and its installation being occupied / used by …… was inspected by me …….. in the presence of you / your representative Thiru/Thirumathy ……* *2.0 During the inspection, unauthorised use of electricity was noticed as detailed below:* *…… (describe the actual mode of unauthorised use of electricity as per the section 126 of the Act).* *3.0 A provisional Assessment order was issued …….. vide reference (1) cited and you were allowed to file your objections if any and also to appear for a hearing as per Tamil Nadu Electricity Supply Code.* *4.0 * As you have not made any objection or representation/ On detailed examination and careful consideration of your explanation offered in your letter cited in reference (2) and with regard to the facts and records furnished by you, the final order is issued herewith as described below:-* *(A reasoned/detailed speaking order to be passed by the Officer concerned after thorough analysis of the unauthorised use of electricity noticed, inspection report, explanation offered and the findings etc., Reference to be made to the materials in support of the claim about the existence of unauthorized use of electricity, the involvement or the role of the consumer with reference to the said unauthorized use of electricity, relevant rules and regulations relating to consumers' duty and obligations, objections made by the consumer in his written reply as well as during his personal hearing, documents/materials submitted by him etc., and reasons for acceptance and rejection of the same).*

	5.0 In case of default in payment of the assessed amount, the TANGEDCO shall after giving a fifteen days notice in writing, disconnect the supply of electricity.	*5.0 The charges payable by you under sub-sections (5) and (6) of the section 126 of the Electricity Act, 2003 is finally assessed at Rs…… (Rupees ……only). The detailed working sheet is enclosed herewith. The said amount shall be paid within 15 days from the date of receipt of this order, failing which the service connection shall become liable for disconnection on expiry of further fifteen days notice.*
	6.0 If you choose to prefer an appeal against this order, you may prefer an appeal in Form 6 of the Tamil Nadu Electricity Supply Code to the appellate authority (Executive Engineer/Superintending Engineer / Operation ……(address of the appellate authority)) within 30 days from the date of receipt of this order on deposit of half of the assessment amount with the TANGEDCO as per section 127(2) of the Electricity Act, 2003 along with an appeal fee of Rs.100/- by Demand Draft. The Demand Draft shall be drawn in favour of ……Payable at ……	*6.0 If you choose to prefer an appeal against this order, you may prefer an appeal in Form 6 of the Tamil Nadu Electricity Supply Code to the appellate authority (Executive Engineer/Superintending Engineer/ Operation ……..(address of the appellate authority)) within 30 days from the date of receipt of this order on deposit of half of the assessment amount with the Licensee as per section 127(2) of the Electricity Act, 2003 along with an appeal fee of Rs.100/- by Demand Draft. The Demand Draft shall be drawn in favour of ……Payable at ……*
	7.0 You are requested to acknowledge the receipt of this assessment order with other enclosures immediately. Yours Faithfully, *(Assessment Officer)* Encl: 1. Report 2. Statement Recorded (if any) 3. Mahazar 4. Provisional Assessment Order. Copy submitted to: He is instructed to arrange to serve the order to the accused person with dated acknowledgement and send the same to this office.	*7.0 You are requested to acknowledge the receipt of this Final assessment order immediately.* *Yours faithfully,* *(Assessment Officer)* *Encl: 1. Inspection Report.* *2. Statement Recorded (if any).* *3. Mahazar.* *4. Provisional Assessment Order.* *5. Working sheet as per FORM 8A.* *Copy submitted to:* *He is instructed to serve the order to the accused person with dated acknowledgement and send the same to this office.* ** Strike out whichever is not applicable.*

(By Order of the Tamil Nadu Electricity Regulatory Commission)

Dr. C. VEERAMANI,
Secretary,
Tamil Nadu Electricity Regulatory Commission.

TAMIL NADU ELECTRICITY REGULATORY COMMISSION

Amendments to the Tamil Nadu Electricity Distribution Code

[Notification No. TNERC/DC/ 8-29, dated 02.09.2023.]

No. VI(2)/16(d-2)/2023

WHEREAS the Tamil Nadu Electricity Regulatory Commission specified the Tamil Nadu Electricity Distribution Code in exercise of the powers conferred by Section 181 of the Electricity Act, 2003 (Central Act 36 of 2003) and notified the same in the *Tamil Nadu Government Gazette*, dated the 1st September, 2004, and subsequent amendments, notified thereafter.

AND WHEREAS it is considered necessary to issue further certain amendments to the Tamil Nadu Electricity Distribution Code and such amendments shall be subject to the condition of previous publication as required under sub-section (3) of the said Section 181 and accordingly undergone previous publication.

NOW THEREFORE, in exercise of the powers conferred on it by Section 181 read with Section 46 and Section 86 of the Electricity Act, 2003 and all other powers enabling it in this behalf, the Tamil Nadu Electricity Regulatory Commission hereby makes the following amendment to the Tamil Nadu Electricity Distribution Code, 2004.

AMENDMENTS

In the said Distribution Code;-

1. **In Regulation 2, at the end of sub-regulation (1), for the general expression, the following shall be substituted, namely:-**

"Words and expressions used in this Code but not defined either in this Code or the Act or the Electricity (Rights of Consumer Rules), 2020 or any other Regulations of the Commissioner the General Clauses Act, 1897 (Central Act 10 of 1897) shall have the same meanings as commonly understood in the Engineering and Commercial parlance."

2. In sub-regulation (3) of Regulation 6, the expression "Annexure-I" shall be substituted with the expression "Appendix-I" and the expression "Annexure-II" shall be substituted with the expression "Appendix-II".

3. In Regulation 27, for sub-regulation (1) and entries related thereto, the following sub-regulation and entries related thereto shall be substituted, namely:-

"(1) the duty of Licensee to supply electricity is as below:

(a) Every Distribution Licensee shall, on an application by the owner or occupier of any premises, give supply of electricity to such premises, within one week after receipt of the application requiring such supply.

Provided that where such supply requires extension of distribution mains, or commissioning of new sub-stations, the Distribution Licensee shall supply the electricity to such premises immediately after such extension or commissioning or within such period as specified in the Distribution Standards of Performance Regulations, 2004 by the Commission as amended.

Provided further that in case of a village or hamlet or area wherein no provision for supply of electricity exists, the Commission may extend the said period as it may consider necessary for electrification of such village or hamlet or area.

Explanation:-

(a) For the purposes of this sub-regulation, 'application' means the application complete in all respects in the appropriate form, as required by the Distribution Licensee, along with documents showing payment of necessary charges and other compliances.

(b) It shall be the duty of every Distribution Licensee to provide, if required, electric plant or electric line for giving electric supply to the premises requiring such supply.

Provided that no person shall be entitled to demand or to continue to receive, from a Licensee the supply of electricity for any premises owned or enjoyed by him unless he has agreed and paid to the Licensee such price and charges as determined by the Commission from time to time.

(c) If a Distribution Licensee fails to supply the electricity within the period specified, he shall be liable to pay to the applicant in compliance with the stipulations of the Distribution Standards of Performance Regulations, 2004 of the Commission as amended.

Provided that the Licensee will refuse to supply electricity to an intending consumer who had defaulted payment of any dues to the Licensee in respect of any other service connection in his name."

4. In sub-regulation (2)(a) of Regulation 27, the expression "Annexure-III" shall be substituted with the expression "Appendix-III".

5. In Regulation 27, in sub-regulation (2), after clause (b), the following shall be inserted: -

"Digging of well / bore well shall not be insisted at the initial stage of registration in case the well / bore well is not existing already."

6. In Regulation 27, in sub-regulation (2), for clause (c)and entries related thereto, the following clause and entries related thereto shall be substituted, namely: -

"(c) As and when the applicant's turn comes in the order of seniority, the Licensee shall issue a 90 days' notice to the applicant to ascertain whether the particulars given in the application such as ownership of the existing or proposed well / bore well and land, S.F. No(s) are the same as on date. Proper acknowledgement from the applicant for having received the notice shall be obtained and preserved. Motor-pump set and capacitor shall not be insisted at this stage. After the well / bore well is made ready with installation and wiring of motor pump set, capacitor etc, the applicant shall enter the particulars with dated signature in the readiness register maintained in the Section office. As per dated seniority of such entry, the Section officer shall make field inspection for confirmation of the particulars and existence of the well / bore well and enter the same in the readiness register with his dated signature within three days.

The date of entering particulars in the readiness register by the applicant shall be reckoned as the seniority for preparing estimate".

***7.* In sub-regulation (2)(i) of Regulation 27, the expression "Annexure-III" shall be substituted with the expression "Appendix-III".**

8. In Regulation 27, the sub-regulation (3) and explanation shall be substituted with the following, namely:-

"(3) The application for HT service connection shall be in FORM-4. Application Form for L.T Service Connection for new or additional demand (other than Temporary supply, Agriculture and Hut), Temporary service connection, LT Agriculture service connection and LT Hut service connection shall be in FORM - 1, 1A, 2 and 3 respectively.

Explanation:

(a) The applicant shall have the option to hand over an application in person or apply online through web portal or mobile app of Distribution Licensee. For applications made online, the acknowledgement with the registration number shall be generated on submission of application and communicated to the applicant.

(b) The application handed over in person shall be scanned and uploaded on the website by the Licensee as soon as it is received. The acknowledgement with the registration number of the application shall be generated and intimated to the applicant.

(c) For HT category, the applications with necessary documents if in order shall be registered on payment of requisite charges. If the application is incomplete, the defects shall be indicated and returned without registration, within seven days of receipt.

For LT category, the applications shall be registered in the first instance on payment of requisite charges. If the application is incomplete, a notice indicating the defect shall be sent within three days to the applicant for rectification and re-submission.

For both categories, the defects so pointed out shall be rectified and resubmitted by the applicant within seven days of receipt of notice, failing which the application is liable for cancellation.

(d) On rectification of defect and resubmission of application, the same shall be acknowledged. If not resubmitted within specified time, the application shall be cancelled with due intimation to the applicant and the charges paid if any shall be refunded to the applicant except registration charges. On cancellation of application, the applicant shall intimate details of his bank account to the Licensee to enable online transfer of refund. The Licensee shall make the refund credited to the applicant's bank account within seven days from the date of such intimation.

(e) The date of generation of acknowledgement of application complete in all aspects with required information and documents shall be deemed to be the date of receipt of application.

(f) In all cases, the acknowledgment shall be generated / sent within twenty four hours of working days after receipt of application.

(g) The application tracking mechanism based on the unique registration number shall be provided by the Distribution Licensee through web-based application or mobile app or through SMS or by any other mode to monitor the status of processing of the application till the supply is given.

(h) All categories of application shall be accompanied with identity proof of the applicant issued by the State / Central Government along with the other required documents specified in the respective application forms.

(i) The application form of new service connection is applicable for the additional demand also. The safety requirement and safety related documents as required for the new service connection shall be applicable to the additional demand also.

(j) The Licensee shall create a mobile app for submission of applications online."

9. In sub-regulation (4) of Regulation 27, the expressions "Annexure-III" shall be substituted with the expressions "Appendix-III".

10. In Regulation 27 after sub-regulation (11A), the following shall be inserted, namely:-

"Apart from the safety compliance as specified above, wherever the height of the building limit is specified by Government Rules or other statutory orders for production of clearance certificate (like 12m height as currently specified in the Tamil Nadu Combined Development and Building Rules), the applicant shall enclose the planning permission along with the plan approval for such buildings. If the height of the building mentioned in the planning permission is less than the limit specified in the aforesaid Rules / orders, clearance certificate as specified in the Rules / orders shall not be insisted. Physical measurement is not necessary for these categories also."

11. In sub-regulation (12) of Regulation 27, the expression "Annexure-III" shall be substituted with the expression "Appendix-III".

12. In Regulation 27 after sub-regulation (15A), the following sub-regulation shall be inserted, namely:-

"15 (B) More than one service connections involving tariff I-D for the use of common facilities in multi tenements residences in domestic premises as provisioned in Tariff Order issued by the Commission from time to time, are exempted from conditions specified in the above sub-regulations."

13. In sub-regulation (16) of Regulation 27, the expression "Annexure-III" shall be substituted with the expression "Appendix-III".

14. In Regulation 29, the existing sub-regulation (12)(a) shall be substituted with the following, namely:-

"(12)(a) Space as per the following norms shall be allotted by the applicant free of cost for establishment of a sub-station / switching station in places of group housing / commercial complex requiring service connections where either (a) the total demand of all the electrical services in the projects including the loads that will be incident in future exceeds / would exceed 5 MVA or (b) total floor area of 30,000 square metre and above is constructed or proposed to be constructed (excluding the stilt floor / basement floor.)

In case of non-availability of land inside the project premises, the applicant may allot the suitable land outside the project premises at a distance not exceeding one kilo metre from the project site provided the proposed site and the project site are connected by public road with clear and sufficient way leave and easy access to erect and maintain OH / Cable line and equipment without any hindrance. The additional cost involved in erecting such lines, cables, equipment, accessories etc., and required civil works if any shall be borne by the applicant. However, the difference in land cost if any is not payable.

In case of requirement of land for large scale projects of customised nature like Industrial estates, SEZ etc., the applicant shall allot the land required to establish the outdoor sub-station from 400kV to 33kV voltage level according to the quantum of load incident / likely to be incident in future, as decided by the Licensee. Single land or multiple lands inside the premises shall be allotted depending upon the intensity of load spread across the area of the land to ensure better voltage profile, quality of supply and operational flexibility for uninterrupted supply."

15. In Regulation 29, for sub-regulation (12) (b) and entries related thereto, the following sub-regulation and entries related thereto shall be substituted, namely:-

Voltage level of the sub-station	*Dimensions and total area of land required in sq.mt.*				*Width of roads on two adjacent sides of the SS land with access to main road for transport (apart from SS area)*
	Outdoor AIS SS (conventional)	*Indoor SS (All HV / LV equipment, bus & panel indoor- only Power / Auto-Transformer outdoor).*	*Partial indoor SS. (HV bus, HV equipment, Auto / Power Transformer outdoor- LV equipment, bus and all panels indoor)*	*Gas Insulated Switchgear sub-station (GIS-SS)*	
33 kV SS	*40m x 60m 2400 Sq.m.*	*25m x 30m 750 Sq.m.*	*35m x 35m 1225 Sq.m.*	*20m x 20m 400 Sq.m.*	*6 m.*

Voltage level of the sub-station	*Dimensions and total area of land required in sq.mt.*				*Width of roads on two adjacent sides of the SS land with access to main road for transport (apart from SS area)*
	Outdoor AIS SS (conventional)	*Indoor SS (All HV / LV equipment, bus & panel indoor- only Power / Auto-Transformer outdoor).*	*Partial indoor SS. (HV bus, HV equipment, Auto / Power Transformer outdoor- LV equipment, bus and all panels indoor)*	*Gas Insulated Switchgear sub-station (GIS-SS)*	
110 kV SS	*60m x 60m 3600 Sq.m.*	*Not in practice*	*40m x 50m 2000 Sq.m.*	*30m x 40m 1200 Sq.m.*	*6 m*
230 kV SS	*120m x 200m 24,000 Sq.m.*	*90m x 180m 16,200 Sq.m.*	*Not in practice*	*60m x 80m 4800 Sq.m.*	*6 m*
400 kV SS	*500m x 320m 1,60,000 Sq.m.*	*Not in practice*	*Not in practice*	*200m x 100m 20000 Sq.m.*	*8 m*

When the developers / owners of the premises apply for additional load / develops additional constructions in phases etc., the above requirement of space for establishment of sub-station shall be applicable for the total load or total area of construction that includes both the existing and additional load / area of construction.

16. In Regulation 29, the sub-regulation (12)(d) and explanation shall be substituted with the following sub-regulation, namely:-

"(12)(d)Where the total demand exceeds / would exceed 5 MVA or the total floor area of 30,000 square metre and above is constructed or proposed to be constructed (excluding the stilt floor / basement floor), the applicant shall allot the land suitable for establishing a conventional outdoor Air Insulated Switchgear (AIS) sub-station. The land shall be offered either by gift deed or sale deed of free of cost or lease deed for 99 years @ Rs.1/- per annum. In case, the applicant chooses to opt for allotting land suitable for Indoor sub-station or partial Indoor sub-station or GIS sub-station other than conventional outdoor AIS sub-station, the applicant shall bear the difference in cost between the Indoor sub-station or partial Indoor sub-station or GIS sub-station for which the space is offered and the conventional outdoor AIS sub-station. The applicant has to allot the land for establishment of sub-station commensurate with the quantum of demand applied or the demand assessed by the Licensee, whichever is higher.

Explanation:

(i) While calculating the difference in cost between the sub-stations of Indoor type and outdoor type or between the sub-stations of Partial indoor and outdoor type or between the sub-stations of GIS type and outdoor type, following methodology shall be adopted:

(ii) The portion pertaining to HV side equipment, the power transformer / Power Transformers feeding the applicant(s), allied LV breaker / LV breakers, CTs, switches, panels, number of LV feeders feeding the applicant(s), feeder equipment, panels, cables, accessories, etc., shall be taken in to account for comparison with the corresponding counterparts of the outdoor sub-station and for computation of difference in cost between them.

(iii) The portion of cost pertaining to remaining Power Transformer(s), their allied HV switches, LV breaker(s), CTs, switches, panels, LV feeders feeding other areas, feeder equipment, panels, cables, accessories etc., shall be entirely borne by the Licensee.

(iv) The difference in cost between the control room building plus other civil works relating to conventional AIS outdoor sub-station and the other type of sub-station for which the land is offered by the applicant, shall be borne by the applicant."

17. In Regulation 29, for sub-regulation (16) and entries related thereto, the following sub-regulation and entries related thereto shall be substituted, namely:-

29 (16) "Having agreed on the position of point of supply, the Engineer will render to the intending consumer an estimate for the cost of laying the service line for the portion inside the consumer's premises if any, barring the cost of Distribution Transformer and allied structure materials and accessories. Any work of laying the service line will be taken up only after the intending consumer pays such estimated amount in advance in full."

18. In Regulation 29, the existing sub-regulation (17) shall be substituted with the following, namely:-

"17. The service line will be the property of the Licensee and the Licensee shall maintain it at his cost. The equipment, poles, pillar boxes meter and accessories erected inside the consumer premises shall be safeguarded by the consumer and maintained by the Licensee. The service connection materials including wire / cable etc., connected with the meter from the nearest pole / pillar box from which it is tapped, shall be safeguarded and maintained by consumer and its replacement either due to damage or wear and tear owing to aging shall be at the cost of consumer."

19. In Regulation 31, after the sub-regulation (1), the following shall be inserted, namely:-

"The original of test report is a permanent and statutory record which shall be retained and preserved by the Licensee."

20. In Regulation 31, for sub-regulation (5), the following sub-regulation shall be substituted, namely:-

***"**(5) If the intending consumer avails supply during the notice period of availability of supply, he shall pay the monthly minimum charges for the entire demand at the notified tariff rate for the period from the date of issue of first notice of supply availability till the date of availing supply.*

The consumers who are availing extension of time beyond the due date specified in the concerned notice for the payment of service connection charges, the BPSC at the appropriate rate shall be levied."

21. In sub-regulation (1) of Regulation 33, the expressions "Annexure-lll" shall be substituted with the expressions "Appendix-lll".

22. In Regulation 33, the existing sub-regulation (5) shall be substituted with the following, namely:-

"(5) In case of permanent disconnection of the meter and allied termination of the agreement as requested by the consumer under sub-regulation (3), the Licensee shall arrange for a special meter reading and prepare a final bill, provided that the meter is in healthy condition with normal functioning and consumption. The disconnection shall be done immediately after payment of the final bill. The balance amount due to any consumption between the final reading and the permanent disconnection or any other due from the consumer in any of his service(s) shall be adjusted against the Security Deposit and interest accrued thereon. The remaining Security Deposit and interest if any shall be either transferred to any other service of the consumer or refunded to the consumer as per the option of the consumer. If the consumer opts for refund, he shall intimate details of his bank account to the Licensee to enable online transfer of refund. The Licensee shall make the refund credited to the applicant's bank account within seven days from the date of such intimation or the date of disconnection whichever is later. The regularization of transaction / accounting of the released meter and closure of accounts shall be done subsequently.

If the due is more than the Security Deposit and interest accrued thereon, the consumer shall pay the balance amount to settle the dues in full before permanent disconnection and termination of agreement."

23. In Regulation 33, after sub-regulation (5), the following sub-regulation shall be inserted, namely:-

"(6) In the case of termination of agreement by the Licensee under sub-regulation (4) the Licensee shall recover from the consumer the dues if any of the terminated service connection and also the dues if any of the other services of same consumer by making such adjustment of dues against the Security Deposit and interest accrued thereon in the terminated service. After making such adjustment, the Licensee shall transfer the balance deposit if any to other service of the consumer or refund to the consumer as per option of consumer, within thirty days from the date of termination of agreement. The regularization of transaction / accounting of the released meter and closure of accounts shall be done subsequently."

24. In Regulation 39, in sub-regulation (2), the existing clause (ii) shall be substituted with the following, namely:-

(ii) "For temporary supply, pre-payment meters (Rechargeable card model) shall be provided. The applicant shall have the option either to purchase the pre-payment meter on his own as per prescribed standards, specifications and relevant Regulations or require that meter be supplied by the Distribution Licensee. Unless the consumer elects to purchase his own meter, the Licensee shall provide meters complying statutory standards and relevant Regulations and may require the consumer to give adequate security for the price of the meter.

For pre-payment meter, payment of Security Deposit for current consumption is not required.

In case of market scarcity of pre-payment meter and both the applicant and Licensee are unable to procure and provide the pre-payment meter, the conventional meter may be provided, either by applicant or by Licensee.

In such cases, Security Deposit equivalent to two times of the tariff charges for the consumption as calculated below shall be collected and maintained throughout the temporary supply period:

Security Deposit = 2 x L x LF x H x D x T

Where,

L = Connected load in kW

LF =Load factor = 0.5

H = Number of hours of a day = 8 hours

D = Number of days of billing cycle period as specified in Regulation 8(1) of the Supply Code / proposed period of use whichever is less.

T = Tariff rate of temporary supply as specified by the Commission from time to time."

25. In Regulation 45, in sub-regulation (1), for clause (i), the following clause shall be substituted, namely:-

"(i) For connecting up an installation, the Licensee shall be entitled to charge the consumer the actual cost of materials, labour, transport plus overhead charges, for the works inside the consumer premises up to meter board, barring Distribution Transformer, its structure and accessories."

26. In Regulation 45, in sub-regulation (1), for clause (iii), the following clause shall be substituted, namely:-

"(iii) The expenditure incurred for the portion outside the premises of the consumers in providing the electrical line and plants including DT, pillar boxes, poles etc., used for the purpose of giving supply to applicants is covered under development charges for LT and HT categories. This charge is determined periodically by the Commission on the basis of load and category of service connection taking into account of tariff wise average cost of materials & man-hours etc., separately for the LT and HT category of overhead lines and underground cables, incurred by the Licensee. In case of EHT category of 110kV and above, the development charges or the estimate charges in providing the electrical line and plant, whichever is higher shall be payable by the consumer. The Licensee shall give due credit for the materials if any supplied by the consumers."

27. In Regulation 45, at the end of sub-regulation (2), the following shall be added, namely:-

"The service connection materials including wire / cable connecting the meter and the nearest pole / pillar box from which it is tapped shall be provided by the consumer."

28. In the said code, in Annexure-I, the heading "Annexure-I" shall be read as "Appendix-I".

29. In Annexure-I, the expression "Refer clause 6(3)" shall be substituted with the expression "Refer Regulation 6(3)".

30. In the said Code, in Annexure-II, the heading "Annexure-II" shall be read as "Appendix-II".

31. In Annexure-II, the expression "Refer clause 6(3)" shall be substituted with the expression "Refer Regulation 6(3)".

32. In the said Code, in Annexure-III, the heading "Annexure-III: FORMATS" shall be read as "Appendix-III: FORMATS".

33. In Annexure III, in FORM 1, the existing caption shall be substituted with the following namely:-

"Application Form for L.T Service Connection for new or additional demand."

34. In Annexure III, in FORM 1, after clause (iii) in the 'Note', the following clause shall be inserted, namely:-

"(iv) Copy of applicant(s)' Identity card (issued by Central / TN State Govt.)"

35. In Annexure-III, in FORM 1A, after clause (iv) in the 'Note', the following clause shall be inserted, namely:-

"(v) Copy of applicant(s)' Identity card (issued by Central / TN State Govt.)"

36. In Annexure-III, in FORM 2, after serial number 4 of "Enclosure", the following shall be inserted, namely:-

"(5) Copy of applicant(s)' Identity card (issued by Central / TN State Govt.)"

37. In Annexure-III, in FORM 3, the 'Note' and entries related thereto, shall be substituted with the following Note and entries related thereto, namely:-

"Note: The applicant shall produce documents as specified in item (i) & (ii) of 'Note' to FORM-1 of this Distribution Code, when the applicant is the owner of the premises, and produce documents in item (iii) when the applicant is not the owner of the premises. In the case of poromboke land, effecting of service connection will be governed by sub-regulation (12) in Regulation 27 of this Code. For all cases, the applicant shall produce a copy of applicant's Identity card (issued by Central / TN State Govt.)"

38. in Annexure-III, in FORM 4, in item No. 9(a), after clause 2 in the 'Note', the following clause shall be inserted, namely:-

"(3) Copy of applicant(s)' Identity card (issued by Central / TN State Govt.)"

39. In FORM-5, the expression "Refer Clause 27(4)" shall be substituted with the expression "Refer Regulation 27(4)".

40. In FORM-6, the expression "Refer Clause 27(4)" shall be substituted with the expression "Refer Regulation 27(4)".

41. In FORM-7, the expression "Refer Clause 33(1)" shall be substituted with the expression "Refer Regulation 33(1)".

42. In FORM-8, the expression "Refer Clause 33(1)" shall be substituted with the expression "Refer Regulation 33(1)".

(By Order of the Tamil Nadu Electricity Regulatory Commission)

Dr. C. VEERAMANI,
Secretary,
Tamil Nadu Electricity Regulatory Commission.

EXPLANATORY STATEMENT

Taking into consideration of recommendations of the Code Review Panel formed and empowered under Regulation 51 of the TNE Distribution Code and provisions of Electricity (Rights of Consumers) Rules, 2020 made by the Ministry of Power, Govt. of India, following amendments are required to be made in the existing Regulations of the TNE Distribution Code 2004, as amended:

The time limit to give supply by the Licensee to the intending consumer where no distribution augmentation is required, need to be reduced to one week.

As there is a long gap of duration between registration of agricultural application and release of service connection, the digging of well / Bore well at the initial stage of registration is not required to be insisted. This has to be made more specific in the regulation for uniform adoption by the Licensee.

The procedure of receipt of application, registration, acknowledgement, further processing, refund etc., for giving new / additional / temporary service connection are to be made more specific for clarity and transparency to the benefit of consumers.

The ambiguity in dealing with the height of the building as specified in statutory building rules has to be cleared in the interest of the consumers.

Statutory provisions for co-existence of service under tariff I-D with services under I-A in a premises where more than one residence are existing, need to be provided in the Regulation in line with the provisions of Tariff order.

The norms for allotment of land for establishment of sub-station need to be revised for practical purposes and changing conditions. The space to be offered by the developers / consumers for establishment of sub-station in applicable cases, has to be made with wide-ranged options to suit various type of sub-stations, according to the option and convenience of the consumers / developers.

The land to be offered for the sub-station has to be made to the option of consumer / developer i.e., either by gift or lease deed to safeguard the interest of the consumers who are the ultimate beneficiary of such projects.

The methodology adopted to compute the difference in cost between the conventional type SS and other type of sub-stations is to be made more specific and clear for uniform adoption, without scope for interpretation and dispute.

The existing condition of offering the land for the sub-station by IT industries needs to be done away to supplement the policies of promoting Industrial growth and employment opportunities.

The obligation of consumer to erect and maintain the service connection wire / cable connecting the meter needs to be made clearer.

The procedure for permanent dismantling of services on request by the consumer is required to be specified along with methodologies of refund of the available deposit and its time limits.

The concept of development charges, applicability and its mandated implementation is required to be made more clear and specific to avoid scope for interpretation and consumers being unduly charged by the Licensee and unnecessary litigation.

Accordingly, this amendment seeks to incorporate the above provisions in the Regulations of the Commission.

(By Order of the Tamil Nadu Electricity Regulatory Commission)

Dr. C. VEERAMANI,
Secretary,
Tamil Nadu Electricity Regulatory Commission.

ANNEXURE

TAMIL NADU ELECTRICITY DISTRIBUTION CODE

Sl. No.	*Existing Regulation*	*Regulation as amended*
1	**2. Definitions** (a) to (dd) xxx Words and expressions used in this Code but not defined either in this Code or the Act or the General Clauses Act 1897 (Central Act 10 of 1897) shall have the same meanings as understood in the Engineering and Commercial circles.	***2. Definitions*** (a) to (dd) xxx *Words and expressions used in this Code but not defined either in this Code or the Act or the Electricity (Rights of Consumer Rules), 2020 or any other Regulations of the Commission or the General Clauses Act 1897 (Central Act 10 of 1897) shall have the same meanings as commonly understood in the Engineering and Commercial parlance.*
2	**6(3)** Load Data: From the metering data collected at each connection point with the transmission system, the Licensee shall develop load curves for the area fed and also the system load curve for the area of supply in point by applying a suitable diversity factor. By reconciling the figure for actual energy sales with the drawal based on the metering data compiled, approximate losses in the system may be arrived at for any period. This data shall be furnished to the STU and the Commission annually. All the consumers with a demand of 1 MW and above seeking connection shall furnish their load data to the Licensee, as detailed in Annexure I. The Licensee shall exercise special care in monitoring the actual development of loads in respect of consumers who desire to contract for loads of 1 MW and above at any single point. On demand by the consumer seeking connection, the Licensee shall furnish relevant system data as detailed in Annexure–II. The Licensee shall update the system data at least once in every six months.	***6(3)*** *Load Data:* *From the metering data collected at each connection point with the transmission system, the Licensee shall develop load curves for the area fed and also the system load curve for the area of supply in point by applying a suitable diversity factor. By reconciling the figure for actual energy sales with the drawal based on the metering data compiled, approximate losses in the system may be arrived at for any period. This data shall be furnished to the STU and the Commission annually. All the consumers with a demand of 1 MW and above seeking connection shall furnish their load data to the Licensee, as detailed in Appendix–I. The Licensee shall exercise special care in monitoring the actual development of loads in respect of consumers who desire to contract for loads of 1 MW and above at any single point. On demand by the consumer seeking connection, the Licensee shall furnish relevant system data as detailed in Appendix–II. The Licensee shall update the system data at least once in every six months.*
3	**27. Requisitions for Supply of Energy*:*** (1) The provision regarding the duty of Licensee as detailed in section 43 of the Act to supply electricity on request is reproduced below: (1) Save as otherwise provided in this Act, every distribution licensee, shall, on an application by the owner or occupier of any premises, give supply of electricity to such premises, within one month after receipt of the application requiring such supply. Provided that where such supply requires extension of distribution mains, or commissioning of new sub-stations, the Distribution Licensee shall supply the electricity to such premises immediately after such extension or commissioning or within such period as may be specified by the appropriate commission.	***27. Requisition for Supply of Electricity:*** *(1) the duty of Licensee to supply electricity is as below:* *(a) Every Distribution Licensee, shall, on an application by the owner or occupier of any premises, give supply of electricity to such premises, within one week after receipt of the application requiring such supply.* *Provided that where such supply requires extension of distribution mains, or commissioning of new sub-stations, the Distribution licensee shall supply the electricity to such premises immediately after such extension or commissioning or within such period as specified in the Distribution Standards of Performance Regulations, 2004 by the Commission as amended.*

Sl. No.	*Existing Regulation*	*Regulation as amended*
	Provided further that in case of a village or hamlet or area wherein no provision for supply of electricity exists, the Appropriate Commission may extend the said period as it may consider necessary for electrification of such village or hamlet or area. Explanation:- For the purposes of this sub-section, "application" means the application complete in all respects in the appropriate form, as required by the distribution licensee, along with documents showing payment of necessary charges and other compliances." (2) It shall be the duty of every distribution licensee to provide, if required, electric plant or electric line for giving electric supply to the premises specified in sub-section (1): Provided that no person shall be entitled to demand, or to continue to receive, from a licensee a supply of electricity for any premises having a separate supply unless he has agreed with the licensee to pay to him such price as determined by the Appropriate Commission. (3) If a distribution licensee fails to supply the electricity within the period specified in subsection (1), he shall be liable to penalty which may extend to one thousand rupees for each day of default." Provided that the licensee will refuse to supply electricity to an intending consumer who had defaulted payment of dues to the licensee in respect of any other service connection in his name."	*Provided further that in case of a village or hamlet or area wherein no provision for supply of electricity exists, the Commission may extend the said period as it may consider necessary for electrification of such village or hamlet or area.* *Explanation:-* *(a) For the purposes of this sub-regulation, 'application' means the application complete in all respects in the appropriate form, as required by the Distribution Licensee, along with documents showing payment of necessary charges and other compliances.* *(b) It shall be the duty of every Distribution Licensee to provide, if required, electric plant or electric line for giving electric supply to the premises requiring such supply.* *Provided that no person shall be entitled to demand or to continue to receive, from Licensee the supply of electricity for any premises owned or enjoyed by him unless he has agreed and paid to the Licensee such price and charges as determined by the Commission from time to time.* *(c) If a Distribution Licensee fails to supply the electricity within the period specified, he shall be liable to pay to the applicant in compliance with the stipulations of the Distribution Standards of Performance Regulations, 2004 of the Commission as amended.* *Provided that the Licensee will refuse to supply electricity to an intending consumer who had defaulted payment of any dues to the Licensee in respect of any other service connection in his name.*
4	**27(2)** (a) Application for supply to agriculture category shall be in Form 2 of Annexure III. In respect of the agricultural category, this provision shall be governed by the directives issued by the Commission from time to time, on the basis of the guidance on this matter by the National Electricity Policy (as stipulated in sub section 4 under section 86 of the Act) and the policy directions in public interest given by the State Government under sub-section (1) of section 108 of the Act.	***27(2)*** *(a) Application for supply to agriculture category shall be in Form 2 of Appendix–III. In respect of the agricultural category, this provision shall be governed by the directives issued by the Commission from time to time, on the basis of the guidance on this matter by the National Electricity Policy (as stipulated in sub section 4 under section 86 of the Act) and the policy directions in public interest given by the State Government under sub- section (1) of section 108 of the Act.*
5	**27(2)** (b) When the application is in order, it shall be registered with the seniority number by the registering authority and the applicant shall be informed of the seniority of registration in writing with proper acknowledgement from the applicant.	***27(2)*** *(b) When the application is in order, it shall be registered with the seniority number by the registering authority and the applicant shall be informed of the seniority of registration in writing with proper acknowledgement from the applicant.* *"Digging of well / bore well shall not be insisted at the initial stage of registration in case the well / bore well is not existing already.*

Sl. No.	*Existing Regulation*	*Regulation as amended*
6	**27(2)** (c) As and when the applicant's turn comes in the order of seniority, the Licensee shall issue a 90 days' notice to the applicant to ascertain whether the particulars given in the application such as ownership of the existing or proposed well / bore well and land, S.F. No(s) are the same as on date. Proper acknowledgement from the applicant for having received the notice shall be obtained and preserved. Motor-pump set and capacitor shall not be insisted at this stage. On receipt of particulars from the applicant, the section officer shall make a field inspection for confirmation of the particulars and existence of the well/ bore well and enter the particulars in the readiness register maintained in the section office. The date of entering particulars in the readiness register shall be reckoned as the seniority for preparing estimate. (d) to (h) xxx	***27(2)*** *(c) As and when the applicant's turn comes in the order of seniority, the Licensee shall issue a 90 days' notice to the applicant to ascertain whether the particulars given in the application such as ownership of the well and land, S.F. No(s) are the same as on date. Proper acknowledgement from the applicant for having received the notice shall be obtained and preserved. Motor-pump set and capacitor shall not be insisted at this stage. After the well / bore well is made ready with installation and wiring of motor pump set, capacitor etc, the applicant shall enter the particulars with dated signature in the readiness register maintained in the Section office. As per dated seniority of such entry, the Section officer shall make field inspection for confirmation of the particulars and existence of the well / bore well and enter the same in the readiness register with his dated signature within three days.* *The date of entering particulars in the readiness register by the applicant shall be reckoned as the seniority for preparing estimate.* (d) to (h) xxx
7	**27(2)** (i) The prospective consumer should report his readiness to avail supply with his installation erected within the notice period and furnish the details of motor-pump set and capacitor and execute the agreement in form -7 of Annexure III appended to this code. (j) to (k) xxx	***27(2)*** *(i) The prospective consumer should report his readiness to avail supply with his installation erected within the notice period and furnish the details of motor-pump set and capacitor and execute the agreement in FORM -7 of Appendix-III appended to this code.* *(j) to (k) xxx*
8	**27.** (3) The application for HT service connection shall be in FORM-4. Application for LT service connection (other than Temporary supply, Agriculture and Hut), Temporary service connection, LT Agriculture service connection and LT Hut service connection shall be in FORM - 1, 1A, 2 and 3 respectively. Explanation: (1) Requisitions for supply of energy for HT/LT categories (Applications), handed over in person or sent by post or submitted online through the Licensee's web portal, even if incomplete, should be acknowledged in writing/through email. In the case of requisition of supply made online, the acknowledgement can be self generated from the web portal. For the applications sent by post, in addition to acknowledgment through email, the Licensee at its discretion can intimate through short message service (SMS).	***27.*** *(3) The application for HT service connection shall be in FORM-4. Application Form for L.T Service Connection for new or additional demand (other than Temporary supply, Agriculture and Hut), Temporary service connection, LT Agriculture service connection and LT Hut service connection shall be in FORM - 1, 1A, 2 and 3 respectively.* *Explanation:* *(a) The applicant shall have the option to hand over an application in person or apply online through web portal or mobile app of Distribution Licensee. For applications made online, the acknowledgement with the registration number shall be generated on submission of application and communicated to the applicant.*

Sl. No.	*Existing Regulation*	*Regulation as amended*
	(2) For requisitions of supply under HT category, the applications with necessary documents if in order, shall be registered on payment of requisite charges. If they are incomplete, the defects shall be indicated and returned without registration. For requisitions of supply under LT category, the applications shall be registered in the first instance on payment of registration charges. If the application with necessary documents are incomplete, the defects shall be indicated and necessary notice sent to the applicant for rectification and re-submission of the same within seven days of receipt of notice, failing which the application is liable for cancellation.";.	*(b) The application handed over in person shall be scanned and uploaded on the website by the Licensee as soon as it is received. The acknowledgement with the registration number of the application shall be generated and intimated to the applicant.* *(c) For HT category, the applications with necessary documents if in order shall be registered on payment of requisite charges. If the application is incomplete, the defects shall be indicated and returned without registration, within seven days of receipt.* *For LT category, the applications shall be registered in the first instance on payment of requisite charges. If the application is incomplete, a notice indicating the defect shall be sent within three days to the applicant for rectification and re-submission.* *For both categories, the defects so pointed out shall be rectified and resubmitted by the applicant within seven days of receipt of notice, failing which the application is liable for cancellation.* *(d) On rectification of defect and resubmission of application, the same shall be acknowledged. If not resubmitted within specified time, the application shall be cancelled with due intimation to the applicant and the charges paid if any shall be refunded to the applicant except registration charges. On cancellation of application, the applicant shall intimate details of his bank account to the Licensee to enable online transfer of refund. The Licensee shall make the refund credited to the applicant's bank account within seven days from the date of such intimation.* *(e) The date of generation of acknowledgement of application complete in all aspects with required information and documents shall be deemed to be the date of receipt of application.* *(f) In all cases, the acknowledgment shall be generated / sent within twenty four hours of working days after receipt of application.* *(g) The application tracking mechanism based on the unique registration number shall be provided by the Distribution Licensee through web-based application or mobile app or through SMS or by any other mode to monitor the status of processing of the application till the supply is given.* *(h) All categories of application shall be accompanied with identity proof of the applicant issued by the State / Central Government along with the other required documents specified in the respective application forms.* *(i) The application form of new service connection is applicable for the additional demand also. The safety requirement and safety related documents as required for the new service connection shall be applicable to the additional demand also.* *(j) The Licensee shall create a mobile app for submission of applications online.*

Sl. No.	*Existing Regulation*	*Regulation as amended*
9	**27.** (4) An intending consumer who is not the owner of the premises shall produce a consent letter in Form 5 of Annexure III to this code from the owner of the premises for availing the supply. If the owner is not available or refuses to give consent letter, the intending consumer shall produce valid proof of his/her being in occupation of the premises and also execute an indemnity bond in Form 6 of the Annexure III to this code indemnifying the licensee against any loss on account of disputes arising out of effecting service connection to the occupant and acceptance to pay security deposit twice the normal rate. Explanation: - For the purpose of this sub-regulation, the expression" valid proof" means any proof of occupancy such as registered power of attorney or latest rent receipt issued prior to the date of application or lease deed or possession order from appropriate authority or decree or judgment of Courts. (9) to (11) xxx	**27.** *(4) An intending consumer who is not the owner of the premises shall produce a consent letter in FORM 5 of Appendix–III to this Code from the owner of the premises for availing the supply. If the owner is not available or refuses to give consent letter, the intending consumer shall produce valid proof of his / her being in occupation of the premises and also execute an indemnity bond in FORM 6 of the Appendix–III to this Code indemnifying the Licensee against any loss on account of disputes arising out of effecting service connection to the occupant and acceptance to pay security deposit twice the normal rate.* *Explanation: - For the purpose of this sub-regulation, the expression 'valid proof' means any proof of occupancy such as registered power of attorney or latest rent receipt issued prior to the date of application or lease deed or possession order from appropriate authority or decree or judgment of Courts.* *(9) to (11) xxx*
10	**27.** (11A) Where the requisition for supply is for a multi-storeyed building, the applicant shall enclose the planning permission along with building plan approval with the application. The Licensee shall verify the height of the building from the planning permission / building plan approval enclosed by the applicant. Physical measurement is not necessary. If the height of the multi-storeyed building is more than 15 metre as given in the planning permission / building plan approval, necessary approval from the Electrical Inspector in compliance with CEA (Measures relating to Safety and Electric Supply) Regulations 2010 as amended, shall be furnished by the applicant. (11B) xxx	***27.*** *(11A) Where the requisition for supply is for a multi-storeyed building, the applicant shall enclose the planning permission along with building plan approval with the application. The Licensee shall verify the height of the building from the planning permission / building plan approval enclosed by the applicant. Physical measurement is not necessary. If the height of the multi-storeyed building is more than 15 metre as given in the planning permission / building plan approval, necessary approval from the Electrical Inspector in compliance with CEA (Measures relating to Safety and Electric Supply) Regulations 2010 as amended, shall be furnished by the applicant.* *Apart from the safety compliance as specified above, wherever the height of the building limit is specified by Government Rules or other statutory orders for production of clearance certificate (like 12m height as currently specified in the Tamil Nadu Combined Development and Building Rules), the applicant shall enclose the planning permission along with the plan approval for such buildings. If the height of the building mentioned in the planning permission is less than the limit specified in the aforesaid Rules / orders, clearance certificate as specified in the Rules / orders shall not be insisted. Physical measurement is not necessary for these categories also.* *(11B) xxx*

Sl. No.	*Existing Regulation*	*Regulation as amended*
11	**27**. (12) Supply shall be given in Poromboke lands/ Government lands on production of No Objection Certificate obtained from the concerned officer of the Government of Tamil Nadu. The applicant shall execute an indemnity bond in FORM-6 of the ANNEXURE III to this code and also pay security deposit twice the normal rate. 27(13) to 27(15) xxx	***27.*** *(12) Supply shall be given in Poromboke lands / Government lands on production of No Objection Certificate obtained from the concerned officer of the Government of Tamil Nadu. The applicant shall execute an indemnity bond in FORM-6 of the Appendix–III to this Code and also pay Security Deposit twice the normal rate.* *27(13) to 27(15) xxx*
12	**27.** (15A)Notwithstanding anything contained in sub-regulations (14) and (15), a person or an establishment or an entity shall be given only one service connection in a premises or in contiguous premises to run a business or service or occupation or another form of activity including its associated activities and for activities of the associates even if there is a permanent physical segregation**.** .	**27.** *(15A) xxx* *15(B) More than one service connections involving tariff I-D for the use of common facilities in multi tenements residences in domestic premises as provisioned in Tariff Order issued by the Commission from time to time, are exempted from conditions specified in the above sub-regulations.*
13	**27.** (16) In case of non-compliance by the Licensee, of the provisions as above, the intending consumer can approach the Consumer Grievance Redressal Forum established under section 42(5) of the Electricity Act 2003. **Explanation:-** For the removal of doubts, it is hereby declared that the expression "other compliances" occurring in the Explanation to section 43(1) of the Act as reproduced in sub- regulation (1) shall mean the documents mentioned in the Forms specified in ANNEXURE III to this Code and any decree or order or judgment of Courts	***27.*** *(16) In case of non-compliance by the Licensee, of the provisions as above, the intending consumer can approach the Consumer Grievance Redressal Forum established under section 42(5) of the Electricity Act 2003.* ***Explanation:-** For the removal of doubts, it is hereby declared that the expression "other compliances" occurring in the Explanation to section 43(1) of the Act as reproduced in sub- regulation (1) shall mean the documents mentioned in the Forms specified in Appendix–III to this Code and any decree or order or judgment of Courts.*
14	**29. Service Lines** (1) to (11) xxx (12)(a) Space as per the following norms shall be allotted by the applicant free of cost for establishment of a sub-station / switching station in places requiring service connections (except industrial service connections other than IT related purposes) where either (a) the total demand of all the electrical services in the projects including the loads that will be incident in future exceeds / would exceed 5 MVA or (b) total floor area of 30,000 square metre and above is constructed or proposed to be constructed (excluding the stilt floor/basement floor	***29. Service Lines*** *(1) to (11) xxx* *12)(a)Space as per the following norms shall be allotted by the applicant free of cost for establishment of a sub-station / switching station in places of group housing / commercial complex requiring service connections where either (a) the total demand of all the electrical services in the projects including the loads that will be incident in future exceeds / would exceed 5 MVA or (b) total floor area of 30,000 square metre and above is constructed or proposed to be constructed (excluding the stilt floor / basement floor.*

<table>
<tr><th>Sl. No.</th><th>Existing Regulation</th><th>Regulation as amended</th></tr>
<tr><td></td><td></td><td>In case of non-availability of land inside the project premises, the applicant may allot the suitable land outside the project premises at a distance not exceeding one kilo metre from the project site provided the proposed site and the project site are connected by public road with clear and sufficient way leave and easy access to erect and maintain OH / Cable line and equipment without any hindrance. The additional cost involved in erecting such lines, cables, equipment, accessories etc., and required civil works if any shall be borne by the applicant. However, the difference in land cost if any is not payable.

In case of requirement of land for large scale projects of customised nature like Industrial estates, SEZ etc., the applicant shall allot the land required to establish the outdoor substation from 400kV to 33kV voltage level according to the quantum of load incident / likely to be incident in future, as decided by the Licensee. Single land or multiple lands inside the premises shall be allotted depending upon the intensity of load spread across the area of the land to ensure better voltage profile, quality of supply and operational flexibility for uninterrupted supply.</td></tr>
<tr><td>15</td><td>29.
12(b)The requirement of land for establishment of sub-stations shall be the minimum limit with configuration given below:
<table><tr><th rowspan="2">Voltage level of the sub-station</th><th colspan="2">Land Requirement in Sq.mts.</th></tr><tr><th>Normal sub-station</th><th>Compact sub-station</th></tr><tr><td>33 KV sub-station</td><td>850 (indoor)
3160 (outdoor)</td><td>400 (size of 20x20 or 10x40 with approaches on any two adjacent sides)</td></tr><tr><td>110 KV sub-station</td><td>4000 (outdoor)</td><td>1050</td></tr><tr><td>230 KV sub-station</td><td>16000 (outdoor)</td><td>1750</td></tr></table></td><td>29.
12(b)The requirement of land for establishment of sub-stations shall be the minimum limit with configuration given below:
<table><tr><th rowspan="2">Voltage level of the sub-station</th><th colspan="4">Dimensions and total area of land required in sq.mt.</th><th rowspan="2">Width of roads on two adjacent sides of the SS land with access to main road for transport (apart from SS area)</th></tr><tr><th>Outdoor AIS SS (conven-tional)</th><th>Indoor SS (All HV / LV equip-ment, bus & panel indoor-only Power / Auto-Trans former outdoor).</th><th>Partial indoor SS. (HV bus, HV equip ment, Auto / Power Trans former outdoor-LV equip-ment, bus and all panels indoor)</th><th>Gas Insulated Switch gear sub-station (GIS)</th></tr><tr><td>33 kV SS</td><td>40m x 60m 2400 Sq.m.</td><td>25m x 30m 750 Sq.m.</td><td>35m x 35m 1225 Sq.m.</td><td>20m x 20m 400 Sq.m.</td><td>6 m</td></tr><tr><td>110 kV SS</td><td>60m x 60m 3600 Sq.m.</td><td>Not in practice</td><td>40m x 50m 2000 Sq.m.</td><td>30m x 40m 1200 Sq.m.</td><td>6 m</td></tr><tr><td>230 kV SS</td><td>120m x 200m 24,000 Sq.m.</td><td>90m x 180m 16,200 Sq.m</td><td>Not in practice</td><td>60m x 80m 4800 Sq.m.</td><td>6 m</td></tr><tr><td>400 kV SS</td><td>500m x 320m 1,60,000 Sq.m.</td><td>Not in practice</td><td>Not in practice</td><td>200m x 100m 20000 Sq.m.</td><td>8 m</td></tr></table></td></tr>
</table>

Sl. No.	*Existing Regulation*	*Regulation as amended*
	When the developers / owners of the premises apply for additional load / develops additional constructions in phases etc., the above requirement of space for establishment of sub-station shall be applicable for the total load or total area of construction that includes both the existing and additional load / area of construction	*When the developers / owners of the premises apply for additional load / develops additional constructions in phases etc., the above requirement of space for establishment of sub-station shall be applicable for the total load or total area of construction that includes both the existing and additional load / area of construction*
16	**29.** (12)(c) xxx (12)(d) Where the total demand exceeds / would exceed 5 MVA or the total floor area of 30,000 square metre and above is constructed or proposed to be constructed (excluding the stilt floor / basement floor), the applicant shall allot the land suitable for establishing a conventional outdoor Air Insulated Switchgear (AIS) sub-station. In case, the applicant chooses to opt for allotting land suitable for Compact or Indoor sub-station other than conventional outdoor AIS sub-station, the applicant shall bear the difference in cost between the Compact or Indoor sub-station for which the space is offered and the conventional outdoor AIS sub-station. The applicant has to allot the land for establishment of sub-station commensurate with the quantum of demand applied or the demand assessed by the Licensee, whichever is higher. Explanation: (i) While calculating the difference in cost between the sub-stations of compact and outdoor type or between the sub-stations of indoor and outdoor type, following methodology shall be adopted." (ii) The portion pertaining to HV side equipment, only one power transformer that feeds the applicant(s), its allied LV breaker, CTs, switches, panels, number of its LV feeders feeding the applicant, feeder equipment, panels, cables, accessories, etc., shall be taken in to account for comparison with the corresponding counterparts of the outdoor sub-station and for computation of difference in cost between them. (iii) The portion of cost pertaining to remaining Power Transformer(s), their allied HV switches, LV breakers, CTs, switches, panels, LV feeders feeding other areas, feeder equipment, panels, cables, accessories etc., shall be entirely borne by the Licensee. (12) (e) xxx	***29.*** *(12)(c) xxx* *(12)(d) Where the total demand exceeds/would exceed 5 MVA or the total floor area of 30,000 square metre and above is constructed or proposed to be constructed (excluding the stilt floor / basement floor), the applicant shall allot the land suitable for establishing a conventional outdoor Air Insulated Switchgear (AIS) sub-station. The land shall be offered either by gift deed or sale deed of free of cost or lease deed for 99 years @ Rs.1/- per annum. In case, the applicant chooses to opt for allotting land suitable for Indoor sub-station or partial Indoor substation or GIS sub-station other than conventional outdoor AIS sub-station, the applicant shall bear the difference in cost between the Indoor sub-station or partial Indoor substation or GIS sub-station for which the space is offered and the conventional outdoor AIS sub-station. The applicant has to allot the land for establishment of sub-station commensurate with the quantum of demand applied or the demand assessed by the Licensee, whichever is higher.* *Explanation: (i) While calculating the difference in cost between the sub-stations of Indoor type and outdoor type or between the sub-stations of Partial indoor and outdoor type or between the sub-stations of GIS type and outdoor type, following methodology shall be adopted:* *(ii) The portion pertaining to HV side equipment, the power transformer/Power Transformers feeding the applicant(s), allied LV breaker / LV breakers, CTs, switches, panels, number of LV feeders feeding the applicant(s), feeder equipment, panels, cables, accessories, etc., shall be taken in to account for comparison with the corresponding counterparts of the outdoor sub-station and for computation of difference in cost between them.* *(iii) The portion of cost pertaining to remaining Power Transformer(s), their allied HV switches, LV breaker(s), CTs, switches, panels, LV feeders feeding other areas, feeder equipment, panels, cables, accessories etc., shall be entirely borne by the Licensee.* *(iv) The difference in cost between the control room building plus other civil works relating to conventional AIS outdoor sub-station and the other type of sub-station for which the land is offered by the applicant, shall be borne by the applicant.* *(12) (e) xxx*

Sl. No.	*Existing Regulation*	*Regulation as amended*
17	**29.** (13) to (15) xxx (16) Having agreed on the position of point of supply, the Engineer will render to the intending consumer an estimate for the cost of laying the service line. Any work of laying the service line will be taken up only after the intending consumer pays the estimated amount in advance in full. The charges payable by the intending consumer for service line shall be as estimated by the Licensee from time to time."	***29.*** *(13) to (15) xxx* *(16) Having agreed on the position of point of supply, the Engineer will render to the intending consumer an estimate for the cost of laying the service line for the portion inside the consumer's premises if any, barring the cost of Distribution Transformer and allied structure materials and accessories. Any work of laying the service line will be taken up only after the intending consumer pays such estimated amount in advance in full.*
18	**29.** (17) The entire service line will be the property of the Licensee and the Licensee will maintain it at his/her cost. (18) xxx	***29.*** *(17) The service line will be the property of the Licensee and the Licensee shall maintain it at his cost. The equipment, poles, pillar boxes meter and accessories erected inside the consumer premises shall be safeguarded by the consumer and maintained by the Licensee. The service connection materials including wire / cable etc., connected with the meter from the nearest pole / pillar box from which it is tapped, shall be safeguarded and maintained by consumer and its replacement either due to damage or wear and tear owing to aging shall be at the cost of consumer.* *(18) xxx*
19	**31.Inspections, testing and effecting supply:** (1) After completion of the wiring, notice must be sent to the Engineer by the intending consumer (upon printed test report form obtainable free of cost from the offices of the Licensee) that the installation has been completed and tested and that the same is complete and ready for inspection and test by the Engineer. Notice of the Engineer's intention to inspect and test the installation will be sent to the intending consumer who must be present or his / her competent representative at the time fixed to give information that may be necessary concerning the installation. Upon executing / signing of the test report, a copy of the test report shall be given to the consumer. (2) to (4) xxx	***31. Inspections, testing and effecting supply:*** *(1) After completion of the wiring, notice must be sent to the Engineer by the intending consumer (upon printed test report form obtainable free of cost from the offices of the Licensee) that the installation has been completed and tested and that the same is complete and ready for inspection and test by the Engineer. Notice of the Engineer's intention to inspect and test the installation will be sent to the intending consumer who must be present or his / her competent representative at the time fixed to give information that may be necessary concerning the installation. Upon executing / signing of the test report, a copy of the test report shall be given to the consumer.* *The original of test report is a permanent and statutory record which shall be retained and preserved by the Licensee.* *(2) to (4) xxx*
20	**31.** (5) If the intending consumer avails supply during the notice period of availability of supply he shall pay the monthly minimum charges at the notified tariff rate for the period from the date of issue of first notice of supply availability till the date of availing supply. (6) xxx	***31.*** *(5) If the intending consumer avails supply during the notice period of availability of supply he shall pay the monthly minimum charges for the entire demand at the notified tariff rate for the period from the date of issue of first notice of supply availability till the date of availing supply.* *The consumers who are availing extension of time beyond the due date specified in the concerned notice for the payment of service connection charges, the BPSC at the appropriate rate shall be levied.* *(6) xxx*

Sl. No.	*Existing Regulation*	*Regulation as amended*
21	**33. Agreements:** (1) All intending consumers shall execute an agreement governing the supply of electricity in the form prescribed at the time of paying the Security Deposit and the service connection charges. The work of extension of supply will be taken up for execution only after the agreement is executed and the Security Deposit and the service connection charges, etc. are paid. For LT consumers other than agricultural and industrial consumers the application is treated as application-cum agreement. In case of LT agriculture and industrial services, the agreement shall be in FORM 7in Annexure III and in case of HT consumers, the agreement shall be in FORM 8 in Annexure III. *(2)* to (4) xxx	***33. Agreements:*** *(1) All intending consumers shall execute an agreement governing the supply of electricity in the form prescribed at the time of paying the Security Deposit and the service connection charges. The work of extension of supply will be taken up for execution only after the agreement is executed and the Security Deposit and service connection charges, etc. are paid. For LT consumers other than agricultural and industrial consumers the application is treated as application-cum agreement. In case of LT agriculture and industrial services, the agreement shall be in FORM 7 in Appendix–III and in case of HT consumers; the agreement shall be in FORM 8 in Appendix–III.* *(2) to (4) xxx*
22	**33.** (5) In the case of termination of the agreement either by the consumer under sub – regulation (3) or by the licensee under sub – regulation (4), as the case may be, the licensee shall recover the dues if any due from the consumer after making such adjustment of the dues, due to him by the consumer as may be necessary to clear the dues from the consumer against the security deposit or additional security deposit or any other deposit made by the consumer and after making such adjustment, refund the balance deposit, if any, to the consumer within three months from the date of termination of the agreement.	***33.*** *(5) In case of permanent disconnection of the meter and allied termination of the agreement as requested by the consumer under sub-regulation (3), the Licensee shall arrange for a special meter reading and prepare a final bill, provided that the meter is in healthy condition with normal functioning and consumption. The disconnection shall be done immediately after payment of the final bill. The balance amount due to any consumption between the final reading and the permanent disconnection or any other due from the consumer in any of his service(s) shall be adjusted against the Security Deposit and interest accrued thereon. The remaining Security Deposit and interest if any shall be either transferred to any other service of the consumer or refunded to the consumer as per the option of the consumer. If the consumer opts for refund, he shall intimate details of his bank account to the Licensee to enable online transfer of refund. The Licensee shall make the refund credited to the applicant's bank account within seven days from the date of such intimation or the date of disconnection whichever is later. The regularization of transaction / accounting of the released meter and closure of accounts shall be done subsequently.* *If the due is more than the Security Deposit and interest accrued thereon, the consumer shall pay the balance amount to settle the dues in full before permanent disconnection and termination of agreement.*
23	**33.**	***33.*** *(6) In the case of termination of agreement by the Licensee under sub-regulation (4) the Licensee shall recover from the consumer the dues if any of the terminated service connection and also the dues if any of the other services of same consumer by making such adjustment of dues against the Security Deposit and interest accrued thereon in the terminated service. After making such adjustment, the Licensee shall transfer the balance deposit if any to other service of the consumer or refund to the consumer as per option of consumer, within thirty days from the date of termination of agreement. The regularization of transaction / accounting of the released meter and closure of accounts shall be done subsequently.*

Sl. No.	*Existing Regulation*	*Regulation as amended*
24	**39. Temporary Supply** (1) xxx (2) xxx (i) xxx (ii) Security deposit equivalent to three times of the tariff charges for the consumption as calculated below shall be collected and maintained throughout the temporary supply period: Security deposit = 3 x L x LF x H x D x T Where, L = Connected load in KW LF = Load factor = 0.5 H = Number of hours of a day = 24 hours D = Number of days of billing cycle period as specified in Regulation 8(1) of the Supply Code/ proposed period of use whichever is less. T = Tariff rate of temporary supply as specified by the Commission from time to time." (iii) to (iv) xxx	***39. Temporary Supply*** *(1) xxx* *(2) xxx* *(i) xxx* *(ii) For temporary supply, pre-payment meters (Rechargeable card Model) shall be provided. The applicant shall have the option either to purchase the pre-payment meter on his own as per prescribed standards, specifications and relevant Regulations or require that meter be supplied by the Distribution Licensee. Unless the consumer elects to purchase his own meter, the Licensee shall provide meters complying statutory standards and relevant Regulations and may require the consumer to give adequate security for the price of the meter.* *For pre-payment meter, payment of Security Deposit for current consumption is not required.* *In case of market scarcity of pre-payment meter and both the applicant and Licensee are unable to procure and provide the pre-payment meter, the conventional meter may be provided, either by applicant or by Licensee.* *In such cases, Security Deposit equivalent to two times of the tariff charges for the consumption as calculated below shall be collected and maintained throughout the temporary supply period:* *Security Deposit = 2 x L x LF x H x D x T* *Where,* *L = Connected load in kW* *LF = Load factor = 0.5* *H = Number of hours of a day = 8 hours* *D = Number of days of billing cycle period as specified in Regulation 8(1) of the Supply Code / proposed period of use whichever is less.* *T = Tariff rate of temporary supply as specified by the Commission from time to time.* *(iii) to (iv) xxx*
25	**45.** **(1) Service Connection Charges:** Regarding the recovery relating to service connection charges: (i) For connecting up an installation, the Licensee shall be entitled to charge the consumer the actual cost of materials upto meter board, labour, transport plus overhead charges	***45.*** ***(1) Service Connection Charges:*** *Regarding the recovery relating to service connection charges:* *(i) For connecting up an installation, the Licensee shall be entitled to charge the consumer the actual cost of labour, transport plus overhead charges, for the works inside the consumer premises up to meter board, barring Distribution Transformer, its structure and accessories.*

Sl. No.	*Existing Regulation*	*Regulation as amended*
26	**45.** (1) (ii) xxx (1) (iii) The estimate for service connection charges may also include the service connection charges for metering referred to in regulation 45(2). The Licensee shall give due credit for the materials if any supplied by the consumers.	***45.*** *(1) (ii) xxx* *(1) (iii) The expenditure incurred for the portion outside the premises of the consumers in providing the electrical line and plants including DT, pillar boxes, poles etc., used for the purpose of giving supply to applicants is covered under development charges for LT and HT categories. This charge is determined periodically by the Commission on the basis of load and category of service connection taking into account of tariff wise average cost of materials & man hours etc., separately for the LT and HT category of over head lines and underground cables, incurred by the Licensee. In case of EHT category of 110kV and above, the development charges or the estimate charges in providing the electrical line and plant, whichever is higher shall be payable by the consumer. The Licensee shall give due credit for the materials if any supplied by the consumers.*
27	**45.** **(2) Service connection charges for metering**: The licensee is authorised to collect service connection charges for metering.	***45.*** ***(2) Service connection charges for metering:*** *The Licensee is authorised to collect service connection charges for metering.* *The service connection materials' including wire / cable connecting the meter and the nearest pole / pillar box from which it is tapped shall be provided by the consumer.*
28 29	ANNEXURE I LOAD DATA FOR DEMANDS OF 1 MW AND ABOVE [Refer clause 6(3)] 1. to 11. xxx	***Appendix–I*** *LOAD DATA FOR DEMANDS OF 1 MW AND ABOVE* ***[Refer Regulation 6(3)]*** *1. to 11. xxx*
30 31	ANNEXURE II SYSTEM DATA TO BE PROVIDED TO THE INTENDING CONSUMER WITH A CONTRACTEDDEMAND OF 1 MW OR MORE [Refer clause 6(3)] 1. to 4. xxx	***Appendix–II*** *SYSTEM DATA TO BE PROVIDED TO THE INTENDING CONSUMER WITH A CONTRACTED DEMAND OF 1 MW OR MORE* ***[Refer Regulation 6(3)]*** *1. to 4. xxx*
32	ANNEXURE – III: FORMATS FORM 1 to FORM 8 xxx	*Appendix – III: FORMATS* *FORM 1 to FORM 8 xxx*

Sl. No.	*Existing Regulation*	*Regulation as amended*
33

Sl. No.	*Existing Regulation*	*Regulation as amended*
37	**FORM-3** APPLICATION FOR HUT SERVICE Refer regulation 27(3)] xxx 1. to 8. xxx Place : Date: Signature / left hand thumb Impression of the Applicant Note: The applicant shall produce documents as specified in item (i) & (ii) of 'Note' to FORM-1 of this Distribution Code, when the applicant is the owner of the premises, and produce documents in item (iii) when the applicant is not the owner of the premises. In the case of poromboke land, effecting of service connection will be governed by sub-regulation (12) in regulation 27 of this Code. FOR LICENSEE'S USE ONLY xxx	***FORM-3*** *APPLICATION FOR HUT SERVICE* *[Refer regulation 27(3)]* *xxx* *1. to 8. xxx* *Place :* *Date:* *Signature / left hand thumb* *Impression of the Applicant* *Note: The applicant shall produce documents as specified in item (i) & (ii) of 'Note' to FORM-1 of this Distribution Code, when the applicant is the owner of the premises, and produce documents in item (iii) when the applicant is not the owner of the premises. In the case of poromboke land, effecting of service connection will be governed by sub-regulation (12) in Regulation 27 of this Code. For all cases, the applicant shall produce a copy of applicant's Identity card (issued by Central / TN State Govt.)* *FOR LICENSEE'S USE ONLY* *xxx*
38	**FORM-4** Application for H.T. Service connections (Including addl. Demand) [FORM OF APPLICATION OF NEW SUPPLY OR ADDITIONS TO CONNECTED LOAD AND HAVING MAXIMUM DEMAND OF 63 KVA AND ABOVE [Refer regulation 27(3)]] xxx 1. to 9(a). xxx Note: (1) to (2) xxx (10) to (11) xxx FOR LICENSEE'S USE ONLY xxx	***FORM-4*** *Application for H.T. Service connections (Including addl. Demand)* [FORM OF APPLICATION OF NEW SUPPLY OR ADDITIONS TO CONNECTED LOAD AND HAVING MAXIMUM DEMAND OF 63 KVA AND ABOVE [Refer regulation 27(3)]] *xxx* 1. *to 9(a).* *xxx* Note: (1) to (2) xxx (3) Copy of applicant(s)' Identity card (issued by Central / TN State Govt.)" (10) to (11) xxx FOR LICENSEE'S USE ONLY xxx
39	**FORM–5** Owner Consent Letter for getting New Supply [Refer clause 27(4)] xxx	***FORM–5*** *Owner Consent Letter for getting New Supply* *[Refer Regulation 27(4)]* xxx
40	**FORM–6** (To be obtained in a stamped paper) [Refer clause 27(4)] xxx	***FORM–6*** *(To be obtained in a stamped paper)* *[Refer Regulation 27(4)]* xxx

Sl. No.	*Existing Regulation*	*Regulation as amended*
41	**FORM–7** LT Agreement for Industrial / Agricultural Services [Refer clause 33(1)] xxx	***FORM–7*** *LT Agreement for Industrial / Agricultural Services* *[Refer Regulation 33(1)]* *xxx*
42	**FORM–8** H.T. AGREEMENT FORM [Refer clause 33(1)] xxx	***FORM–8*** *H.T. AGREEMENT FORM* *[Refer Regulation 33(1)]* *xxx*

(By Order of the Tamil Nadu Electricity Regulatory Commission)

Dr. C. VEERAMANI,
Secretary,
Tamil Nadu Electricity Regulatory Commission.

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ON BEHALF OF THE GOVERNMENT OF TAMIL NADU